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Date : 16/08/2025

Certificate No. G0P2025H914



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Stamp Duty Paid : ₹ 300
(Rs. Only)

Penalty : ₹ 0

(Rs. Zero Only)

Seller / First Party Detail

Name: Yes systems private limited

H.No/Floor : A471

Sector/Ward : Na

LandMark : Ttc midc mahape

City/Village : Navi mumbai

District : Thane

State : Maharashtra

Phone : 99*****03



Buyer / Second Party Detail

Name : Glass wall systems India Limited

H.No/Floor : 503/504

Sector/Ward : 5th

LandMark : A wing

City/Village: Mafatlal mills

District : Mumbai

State : Maharashtra

Phone : 99*****03

Purpose : AGREEMENT ARBITRATION INDEMNITY BOND

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SHARE PURCHASE AGREEMENT

AMONGST

**PERSONS WHOSE NAMES ARE SET OUT IN SCHEDULE 1
(*SELLERS*)**

AND

GLASS WALL SYSTEMS (INDIA) LIMITED (*BUYER*)

AND

**YES SYSTEMS PRIVATE LIMITED
(*COMPANY*)**

AUGUST 21, 2025

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THIS SHARE PURCHASE AGREEMENT (the *Agreement*) is made on August 21, 2025 (*Execution Date*) at Gurgaon, India.

AMONGST:

- (1) **PERSONS WHOSE NAMES ARE SET OUT IN SCHEDULE 1** (hereinafter collectively referred to as the *Sellers*, and individually as *Seller*, which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include their respective legal heirs, executors and administrators);
- (2) **GLASS WALL SYSTEMS (INDIA) LIMITED**, a public limited company incorporated in India, with CIN U74999MH2010PLC207187, PAN AADCG9248G, having its registered office at 503-504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Mumbai, Maharashtra, India, 400013 (hereinafter referred to as the *Buyer*, which expression shall, unless the context requires otherwise, means and includes its successors-in-interest and permitted assigns); and
- (3) **YES SYSTEMS PRIVATE LIMITED**, a private limited company incorporated in India, with CIN U28129MH2021PTC359442, PAN AABCY3780D, having its registered office at 503, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Mumbai, Maharashtra, India, 400013 (hereinafter referred to as the *Company*, which expression shall, unless repugnant to the context or the meaning thereof be deemed to mean and include its successors-in-interest and permitted assigns),

each of the Sellers, the Buyer and the Company are together referred to as the *Parties*, and each as a *Party*.

WHEREAS:

- A. The Company is engaged in the business of fenestration in commercial and residential properties mainly into the premium segment (the *Business*).
- B. As on the Execution Date, the Sellers own all legal and beneficial interest in 50,000 Equity Shares of the Company in the aggregate, constituting 100% of the issued, subscribed and paid-up share capital of the Company on a Fully Diluted Basis (such Equity Shares, the *Sale Shares*, as set out against the names of the Sellers in Schedule 1).
- C. The Sellers have agreed to sell to the Buyer, and the Buyer has agreed to purchase Sale Shares from the Sellers for the consideration as set out herein, relying on the representations, warranties, indemnities, covenants and undertakings provided by the Sellers and the Company, in the manner and as per the terms and conditions set out in this Agreement.
- D. The Parties are entering into this Agreement to record the terms and conditions in relation to the sale and purchase of the Sale Shares, and certain other matters ancillary and incidental thereto.

NOW THEREFORE in consideration of the mutual covenants and agreements set forth herein and for other good and valuable consideration, the sufficiency of which, is hereby acknowledged, the Parties, intending to be legally bound, agree as follows:

1. DEFINITIONS AND INTERPRETATION

- 1.1. Unless expressly provided below, words and expressions used in this Agreement shall be defined and interpreted in accordance with **Schedule 2** (*Definitions and Interpretation*).

2. SALE AND PURCHASE OF SALE SHARES

- 2.1. Subject to terms and conditions of this Agreement, including the satisfaction (or waiver, as the case may be) of the Conditions Precedent in Clause 5 read with Schedule 4 to the sole satisfaction of the Buyer, the Sellers shall sell to the Buyer, and the Buyer shall purchase from the respective Sellers, the Sale Shares with effect from Closing, free from any Encumbrance and together with all rights attaching to them including the right to receive all distributions and dividends declared, paid or made in respect of them on or after Closing, for the consideration as set out in Clause 3.1 below.
- 2.2. Immediately following Closing on the Closing Date, the Buyer shall hold 50,000 Equity Shares of the Company, comprising 100% of the Share Capital of the Company [on a Fully Diluted Basis.

3. CONSIDERATION

- 3.1. The consideration for the Sale Shares shall be in kind, by way of issue and allotment of 87,16,925 (Eighty Seven Lakhs Sixteen Thousand Nine Hundred and Twenty Five) equity shares of the Buyer to the Sellers (collectively, the **Subscription Shares**, which are valued at INR 154,99,56,434.25 (Indian Rupees One Hundred and Fifty Four Crores Ninety Nine Lakhs Nineteen Fifty Six Thousand Four Hundred and Thirty Four and twenty five paise), at a price per equity share of INR 177.81 (Indian Rupees One Hundred and Seventy Seven and eighty one paise), the swap ratio shall be such that, in consideration of every 10,000 (Ten Thousand) equity shares held, the shareholder of the Company shall be entitled to receive 17,43,385 (Seventeen Lakhs Forty-Three Thousand Three Hundred Eighty-Five) equity shares of the Buyer, credited as fully paid-up, in the following manner:

Sl. No.	Seller	Number of Subscription Shares to be issued
1.	Amit Hemrajani	34,86,770
2.	Eshan Hemrajani	34,86,770
3.	Vinne Hemrajani	17,43,385

The shareholding pattern of the Buyer as on the Execution Date is set out in **Part A of Schedule 13**. Upon allotment of the Subscription Shares to the Sellers at Closing, the shareholding pattern of the Buyer shall be as set out in **Part B of Schedule 13**.

- 3.2. Any income Tax (along with surcharge, cess, fine, interest, penalty or any additional charge thereon) payable by the Sellers, including capital gains Taxes, if any, relating to the sale of the Sale Shares, shall be the sole liability and responsibility of each of the Sellers.

4. PRE-CLOSING UNDERTAKINGS

- 4.1. On and from the Execution Date until the Closing Date (**Standstill Period**), the Company shall, and the Sellers shall procure that the Company shall: (i) carry on its Business and operations in all respects in the Ordinary Course of Business and in compliance with Applicable Laws in all material respects, (ii) use best efforts to preserve intact its present Business organization, keep available the services of its present officers and employees, and preserve its relationships with customers, suppliers, Governmental Authorities and others having business dealings with it;

(iii) maintain its books of account and records in accordance with Applicable Law, in the Ordinary Course of Business; and (iv) comply in all material respects with all Applicable Laws applicable to itself and its Business, Properties and Assets, and ensure that all necessary Authorisations obtained and required to be obtained by it are valid and subsisting (or in case the Authorisations are expiring or have expired during such Standstill Period undertake reasonable steps to make necessary applications for renewal of such Authorisations) and all their terms and conditions have been complied with in all material respects.

4.2. Notwithstanding the generality of Clause 4.1, the Company shall not, and the Sellers shall procure that the Company shall not, during the Standstill Period, without the prior written consent of the Buyer, take any of the following actions in relation to the Company (other than in relation to the performance of any obligations of the Sellers or the Company as set out in this Agreement):

- (i) amend or restate any of the provisions of, or rights under the Charter Documents or any change of name, legal status or registered office of the Company;
- (ii) take any action that changes or modifies the share capital of the Company, including any alteration or changes in the rights, preferences or privileges of any class of securities, redemption or buy back of securities, bonus issue, issue of sweat equity shares, all calls in respect of the securities of the Company, or any other modification of the capital structure of the Company;
- (iii) initiate or undertake any scheme of arrangement, merger, demerger, amalgamation, slump sale, spin-offs, acquisition, consolidation, or undertake any other form of corporate or business reorganization, involving the Company, or create any legal entities, subsidiaries, joint ventures or partnerships;
- (iv) appoint or terminate Directors;
- (v) make any payments to the Sellers (except payment of remuneration to Mr. Amit Hemrajani in his capacity as a Director of the Company, of an aggregate amount not exceeding INR 1,50,00,000 (Indian Rupees One Crore Fifty Lakhs only) per annum) or their Relatives;
- (vi) commence any new line of business or reorganize, divest, discontinue or otherwise alter any part of the Business;
- (vii) enter into, modify or terminate any Contract;
- (viii) enter into any new arrangements or agreements with any Related Party, or modify any existing arrangements with Related Parties;
- (ix) incur any obligations with respect to Indebtedness with any Person in excess of INR 1,00,00,000 (Indian Rupees One Crore only);
- (x) incur any capital expenditure in excess of INR 1,00,00,000 (Indian Rupees One Crore only) in the aggregate;
- (xi) pay any bonuses or advances against salaries, or make any other cash payments, other than in each case in the Ordinary Course of Business;
- (xii) acquire any shares or material assets, or dispose of or create Encumbrance on any material assets or stocks;

- (xiii) make any changes in the Company's Financial Year or in its accounting / tax policies;
- (xiv) settle any litigation in excess of INR 1,00,00,000 (Indian Rupees One Crore only);
- (xv) arrangement with or settle with debtors or creditors other than in Ordinary Course of Business;
- (xvi) approve, amend or administer any employee stock option policy or scheme;
- (xvii) transfer, assign or license any intellectual property rights;
- (xviii) initiate, solicit, encourage, negotiate and/or accept any proposal with respect to any transaction involving the purchase of any Shares of the Company or any investment in any Shares or other securities of the Company, or share any information in relation to the Company for the purpose of the foregoing;
- (xix) communicate with a Governmental Authority in relation to any of the Properties or authorisations in connection with the Properties;
- (xx) do, fail to do or permit anything, which could have or result in a Material Adverse Effect; or
- (xxi) enter into any agreement to give effect to any of the foregoing.

4.3. During the Standstill Period:

- (i) the Sellers shall procure that the Company shall reasonably cooperate with the Buyer in relation to, and shall ensure that the Buyer is kept fully involved (and given all explanations and information), in connection with all material matters concerning the Business and shall take full account of the views of the Buyer in relation thereto;
- (ii) the Sellers shall consult, and shall cause the Company to consult, with the Buyer's Representatives with respect to any actual or proposed action or decision which will, to the best knowledge of the Sellers, materially affect the Business, and provide to the Buyer's Representatives such information as they may reasonably request in writing for this purpose;
- (iii) the Sellers shall procure that the Company shall allow the Buyer and its Representatives, upon notice, reasonable access to the books, records and documents of, or relating in whole or in part to, the Business; and
- (iv) the Sellers shall not do, or permit anything which would constitute: (a) a breach of their Warranties, including on the Closing Date; or (b) delay in fulfilment, or non-fulfilment of, the Conditions Precedent.

4.4. From the Execution Date, the Sellers undertake to the Buyer that the entire business pertaining to fenestration, doors (excluding fire doors), windows and glass façade shall be conducted in the Buyer, the Company and their wholly owned subsidiaries.

5. CONDITIONS PRECEDENT

5.1. The obligation of the Buyer to undertake the actions contemplated at Closing shall be conditional upon the fulfilment of each Condition Precedent as set out in **Schedule 4** (*Condition Precedent*) by the Company and/or the Sellers (as the case may be), to the full and complete

satisfaction of the Buyer, unless any one or more of the Conditions Precedent is specifically waived (if capable of being waived) or deferred, in writing, by the Buyer in whole or in part to the extent permitted by Applicable Law.

- 5.2. Upon fulfilment of all Conditions Precedent (unless specifically waived or deferred in writing by the Buyer in whole or in part (to the extent permissible under Applicable Law)), the Sellers and the Company shall (a) certify the fulfilment of the Conditions Precedent by written notice to the Buyer (a **CP Completion Notice**, substantially in the form set forth at **Schedule 6** (*Format of CP Completion Notice*)), enclosing duly authenticated or duly certified copies of all the necessary documents evidencing fulfilment of each Conditions Precedent.
- 5.3. Within 7 (seven) Business Days of receipt of the CP Completion Notice, the Buyer shall notify the Company and the Sellers, substantially in the form set out in **Schedule 7** (*Form of CP Satisfaction Notice*) (the **CP Satisfaction Notice**) that (a) the Conditions Precedent (unless specifically waived or deferred in writing by the Buyer in whole or in part (to the extent permissible under Applicable Law)) have been fulfilled; and/or (b) any one or more of the unfulfilled Conditions Precedent have been waived in writing by the Buyer (in whole or in part), to the extent permitted by Applicable Law; and/or (c) any one or more of the unfulfilled Conditions Precedent have been converted, with the prior written consent of the Sellers, to conditions subsequent to Closing.
- 5.4. The Sellers and the Company each undertake to use their best endeavours to fulfil each of the Conditions Precedent required to be fulfilled by each of them respectively (unless specifically waived or deferred in writing by the Buyer in whole or in part (to the extent permissible under Applicable Law)), to the satisfaction of the Buyer on or prior to the Long Stop Date. If the Sellers or the Company becomes aware of any event or circumstance that will prevent any of the Conditions Precedent from being satisfied on or before the Long Stop Date, they shall forthwith notify the other Parties in writing of the same. The Parties agree to mutually co-operate with each other in good faith and provide all requisite assistance and documentation for the satisfaction of any of the Conditions Precedent upon being reasonably requested to do so, in writing, by the other Parties.

6. CLOSING

- 6.1. Subject to Clause 5 (*Conditions Precedent*), Closing shall take place on a date which is within 30 (thirty) Business Days from the date of delivery of the CP Satisfaction Notice, or such other date (being a Business Day) as may be mutually agreed amongst the Sellers, the Company and the Buyer (the **Closing Date**), which in any event shall not be later than the Long Stop Date.
- 6.2. At Closing, the Sellers, the Company and the Buyer shall do all those things respectively required of each of them as set out in **Schedule 3** (*Closing Requirements*). All transactions contemplated under this Agreement to be consummated at the Closing as set out in **Schedule 3** (*Closing Requirements*) shall be deemed to occur simultaneously and no such transaction shall be deemed to be consummated unless all such transactions are consummated.
- 6.3. Effective as of Closing, each of the Sellers, on their own behalf and on behalf of their administrators, executors, Representatives, successors, permitted assigns claiming by or through the Sellers, hereby absolutely, unconditionally and irrevocably release and forever discharge the Company, and its Directors, members, officers, Affiliates and representatives, from any and all Claims (including any derivative claim on behalf of any Person), relating to, or in any way connected with, or in respect of the Sellers' shareholding in the Company.

7. POST CLOSING ACTIONS AND COVENANTS

Conditions subsequent

- 7.1. Subject to occurrence of Closing, after the Closing Date, the Company and/or the Sellers (as applicable) shall ensure that all actions set out in **Schedule 8** (*Conditions Subsequent*) (unless specifically waived or deferred in writing by the Buyer in whole or in part (to the extent permissible under Applicable Law) are completed or fulfilled within the timelines provided therein (as applicable).

Non-compete

- 7.2. On and from the Closing Date, none of the Sellers and/or their Affiliates shall, jointly and/or severally, directly or indirectly, and whether: (i) individually, through a partnership or as a shareholder, joint venture partner, collaborator, lender, financier, consultant, advisor, secondees, principal contractor or sub-contractor, director, trustee, committee member, office bearer or agent or in any other manner whatsoever, or (ii) along with a director, partner, consultant, manager, employee, shareholder, agent or otherwise, and whether for profit or otherwise:
- (i) engage in any business which competes with the whole or any part of the Business, except through the Buyer, the Company and their respective wholly owned subsidiaries; and/or
 - (ii) initiate any new activities or expansions to the Business other than through the Buyer, the Company and their respective wholly owned subsidiaries.

For avoidance of doubt, for the purposes of this Clause 7.2, the Sellers and/or their Affiliates shall be deemed to be indirectly engaged in the activities mentioned in this Clause 7.2 if any of them or any one or more of their respective Affiliate(s) own(s) more than 5% ownership interest and/or financial interest in any entity carrying on any such activity.

- 7.3. The Sellers undertake to the Buyer that on and from the Closing Date, the Ancillary Entities shall not undertake any new activity which is (i) similar and/or competing with the Business and (ii) related to manufacturing and/or supplying of building materials, however, the Ancillary Entities shall continue to carry on their existing business/activities. The Sellers declare and confirm that the Ancillary Entities are not currently engaged in any business which competes with the whole or any part of the Business, other than the existing business/activities undertaken by the Ancillary Entities, as are set out in the fourth column of Schedule 10 hereto. Any activity or business which is not similar or competing to the Business can be undertaken by the Ancillary Entities. On and from the Closing Date, the Sellers agree and undertake to the Buyer that M.J. Infrastructure Enterprises Private Limited (by whatever name called) shall not have any operating business.
- 7.4. The Sellers further agree that on and from the Closing Date, the Sellers and their Affiliates shall direct all commercial opportunities related to the Business that the Company is engaged in or intends to engage in and that are available to the Sellers and their Affiliates, to the Company and/or the Buyer (and not to any other person or entity) other than the existing business/activities undertaken by the Ancillary Entities (as set out in the fourth column of Schedule 10 hereto).
- 7.5. The Sellers agree and acknowledge that no separate non-compete fees are payable to the Sellers, and the consideration for the non-compete restriction contained herein is deemed to have been received under this Agreement, and the Sellers also acknowledge the receipt and sufficiency of such consideration.

Non-solicitation

- 7.6. The Sellers and the Buyer acknowledge that the ability of the Company to conduct and operate its Business depends upon: (i) its ability to attract and retain skilled people and that the Company has and will continue to invest substantial resources in training such people, and (ii)

its ability to attract and retain customers and business associates. The Sellers undertake to the Buyer that on and from the Closing Date, the Sellers and their Affiliates shall not:

- (i) directly or indirectly, partner with or enter into any activity or hire or attempt to hire for any purpose whatsoever (whether as an employee, consultant, advisor, independent contractor, partner or otherwise) any employee of the Company or any Person who was an important employee of the Company at any time during the last 12 (Twelve) months of his/her employment, and shall use its best efforts to prevent any of their Related Parties from taking any such action;
- (ii) identify any employee of the Company as potential candidate for employment to any third party;
- (iii) personally or through any other Person, approach, recruit or otherwise solicit employees of the Company to work for any other employer (other than the Buyer and/or its Affiliates); and/or
- (iv) persuade any Person which is a client/customer/business associate of the Company, to cease doing business or to reduce the amount of business which any such client/customer/business associate has customarily done or might propose doing with the Company or canvas or solicit any business or custom similar to the Business.

7.7. The Parties acknowledge and agree that the restrictions in Clauses 7.2 to 7.6 above are considered reasonable for the legitimate protection of the Business and goodwill of the Company, but in the event that such restriction shall be found to be void under Law or otherwise, but would be valid if some part thereof was deleted or the scope, period or area of application were reduced, the above restriction shall apply with the deletion of such words or such reduction of scope, period or area of application as may be required to make the restrictions contained in this Clause valid and effective under Law and otherwise. Notwithstanding the limitation of this provision by any Law for the time being in force, the Parties undertake to at all times observe and be bound by the spirit of Clauses 7.2 to 7.6 above. Provided however, upon revocation, removal or diminution of the Applicable Law or provisions, as the case may be, by virtue of which the restrictions contained in Clauses 7.2 to 7.6 were limited as provided hereinabove, the original restrictions would stand renewed and be effective to their original extent, as if they had not been limited by the Law or provisions revoked.

Other covenants

7.8. The Buyer and the Company acknowledge and agree that on and from the Closing Date, the provisions of clause 19.3 of the amended and restated investment agreement dated 11 July 2024 amongst the Buyer, India Business Excellence Fund II, India Business Excellence Fund – IIA, Mr. Jawahar Hemrajani and the Promoter Group Shareholders (as defined therein) (*Restated IA*) shall apply to the Company, and the Buyer and the Company shall take all steps to give effect to the rights and obligations of the parties to the aforementioned agreement pursuant to the terms thereof.

7.9. The Company shall ensure that all work orders entered into by the Company after the Closing Date are duly and adequately stamped, wherever commercially feasible.

8. REPRESENTATIONS AND WARRANTIES

8.1 The Sellers and the Company hereby jointly and severally represent and warrant to the Buyer that the Warranties are true, correct, complete and not misleading in all respects as of the Execution Date, and shall be true, correct, complete and not misleading in all respects as of the

Closing Date (by reference to the facts, events and circumstances subsisting as on the Closing Date), except as disclosed in the Disclosure Letter and/or the Updated Disclosure Letter.

- 8.2 Each of the Warranties shall be construed as a separate and independent warranty and (save as expressly provided to the contrary herein) shall not be limited, restricted, modified or qualified by reference to or inference from the terms of any other Warranty or any other term of this Agreement. The Company and the Sellers acknowledge that the Buyer has entered into this Agreement solely in reliance of the Warranties.
- 8.3 None of the Warranties shall be treated as qualified by any actual or constructive knowledge or investigation on the part of the Buyer or any of its Affiliates, agents, representatives, officers, employees or advisers of the Buyer or its Affiliates. The Buyer's rights are not adversely affected by any due diligence or other investigation made by, or on behalf of, the Buyer or its Affiliates or their respective representatives regarding the Company, the Sellers and/or the Business, or any other matter, whether before or after the Execution Date.
- 8.4 Subject to the information specifically, fully and fairly disclosed in the Disclosure Letter and/or the Updated Disclosure Letter, the Sellers acknowledge that the Buyer has entered into this Agreement in reliance upon the Warranties being true in all respects, and on the indemnities, undertakings and covenants of the Sellers and/or Company, which have constituted a material inducement to the Buyer to enter into this Agreement.
- 8.5 Save as specifically set out in the Disclosure Letter and/or the Updated Disclosure Letter, the Warranties shall not be in any manner be limited by any information disclosed or made available to or received by the Buyer or any representative(s) of the Buyer, whether in the course of any due diligence or otherwise or prejudice any Claim made by the Buyer under or in respect of the Warranties.
- 8.6 The Buyer hereby acknowledges and agrees that except the Warranties as expressly set forth in Schedule 5, the Sellers and the Company do not make any representation or warranty, express or implied, with respect to the subject matter hereof or the transactions contemplated hereby or otherwise.
- 8.7 The Buyer represents and warrants to the Sellers and the Company that each of the following warranties are true, correct, complete and not misleading in all respects as on the Execution Date and shall continue to remain true, correct, complete and not misleading in all respects as on the Closing Date:
- (i) it is validly incorporated and existing under the Applicable Laws of India and has full power to conduct its business as conducted at the date of this Agreement;
 - (ii) it has full legal right, power and authority to enter into, and to perform its obligations under, this Agreement;
 - (iii) it has obtained all corporate, regulatory and other approvals, consents and has taken all necessary corporate actions and satisfied all conditions, necessary to execute, and perform its obligations under this Agreement; and
 - (iv) this Agreement has been duly and validly executed and delivered by it and will constitute legal, valid and binding obligations on it, enforceable against it in accordance with its terms.
 - (v) the execution and delivery of this Agreement by the Buyer does not or shall not violate any order applicable to it or violate or contravene the provisions of or constitute a

default under Applicable Law, the charter documents of the Buyer, any agreements or any other instruments to which the Buyer is a party or by which it is bound.

8.8 The Buyer represents and warrants to the Sellers that as on the Closing Date:

- (i) the Subscription Shares, when issued to the Sellers on the Closing Date in accordance with the Applicable Law and the provisions of this Agreement, shall be duly authorised, validly issued and fully paid-up;
- (ii) upon the issue of Subscription Shares to the Sellers, the Sellers shall have valid title to and be the sole legal and beneficial owners of the Subscription Shares allotted to them, free from any Encumbrances (except as provided under the Restated IA and the articles of association of the Buyer); and
- (iii) all Subscription Shares shall be duly and validly issued and allotted, and except as provided under the Restated IA and the articles of association of the Buyer, there are no conditions or restrictions on the transfer of the Subscription Shares whether under any agreement, arrangement, stock certificate, constitutional documents, Applicable Laws or otherwise, and except this Agreement, the Restated IA and the articles of association of the Buyer, there are no outstanding agreements or arrangements which provide for the allotment, issue or transfer of any share in the capital of the Buyer.

8.9 The Sellers and the Company acknowledge and agree that, except as provided under Clauses 8.7 and 8.8 above, no express or implied representation or warranty are made by or on behalf of the Buyer or its Affiliates or representatives.

9. INDEMNITY

9.1. Subject to the occurrence of Closing and subject to the limitations of liability set forth in this Clause 9, the Sellers (*Indemnifying Parties*) jointly and severally agree and undertake to indemnify, defend and hold harmless the Buyer, and the directors and officers of the Buyer (*Indemnified Persons*), from and against, any and all Losses, relating to or arising out of or in connection with the following matters (*Indemnity Events*):

- (i) subject to the information disclosed in the Disclosure Letter, any misrepresentation in, breach of or inaccuracy in any Warranties made pursuant to this Agreement;
- (ii) any material breach, default or violation of or failure to fulfil any of the covenants, obligations or agreements of the Sellers as set out in this Agreement, where such breach has not been cured, if curable, within 30 (thirty) days following the receipt of notice from the Buyer;
- (iii) any notice received or demand made or proceedings initiated against the Company (except in relation to income Tax or GST), pertaining to the period prior to the Closing Date; and/or
- (iv) any gross negligence or wilful misconduct or fraud by the Seller in relation to the Sale Shares.

Direct Claims

9.2. If any of the Indemnified Persons suffer or incur any Loss on account of any of the Indemnity Events, such Indemnified Person(s) shall, within a period of 30 (thirty) days from the date of becoming aware of the Loss, give a written notice to the Indemnifying Parties specifying the Indemnity Event(s) in respect of which the indemnity is being sought and the amount of Loss

(Indemnification Notice). In the event that the Claim, as set out in the Indemnification Notice is accepted by the Indemnifying Party/ not disputed then, within a period of 30 (thirty) days of receipt of the Indemnification Notice (*Indemnification Payment Period*), the Indemnifying Parties shall pay the full amount claimed under the Indemnification Notice (*Indemnification Amount*) to such Indemnified Person(s) or its nominee by way of electronic transfer of funds into the bank account of such Indemnified Person(s) or its nominee (as the case may be) as specified in the Indemnification Notice. In the event the Claim as set out in the Indemnification Notice is disputed/denied by the Indemnifying Parties or if the Indemnifying Parties do not pay the Indemnification Amount to the Indemnified Person(s) or its nominee (as the case may be) within 30 (thirty) days of receipt of the Indemnification Notice or if such non-payment of the Indemnification Amount is capable of being cured by the Indemnifying Party and has not been cured within 30 (thirty) days or a period as may be mutually agreed between the Parties, then either Party may initiate resolution of the dispute as per the provisions of Clause 16 (*Governing Law and Dispute Resolution*).

Third Party Claims

- 9.3. If any of the Indemnified Persons receives a notice of assertion or commencement of any Claim, demand, legal action, proceeding, suit, litigation, prosecution, mediation or arbitration instituted by a Third Party in connection with an Indemnity Event (*Third Party Claim*), the Indemnified Person(s) shall notify the Indemnifying Parties of such Third Party Claim within a period of 15 (fifteen) days from the date of receipt of a notice of Third Party Claim (*Third Party Claim Notice*), along with all available documents and all available relevant information, in relation to the Third Party Claim.
- 9.4. Upon receipt of a Third Party Claim Notice, the Indemnifying Parties shall, within 30 (thirty) days from the date of receipt of the relevant Third Party Claim Notice or such shorter period as required to respond to the Third Party Claim (as set out in the notice from the Third Party or required by Applicable Law), by providing a written notice to the Indemnified Person(s), at its own cost and expense, (a) assume the control over the defense of such Third Party Claim, including deciding the strategy and the course of action to be adopted for the defense of such Third Party Claim in consultation with the Indemnified Person(s); and (b) contest, compromise or settle any such Third Party Claim through competent legal counsel/professionals of their choice. Provided however, that if such Third Party Claim involves any direct or indirect criminal liability against the Company or the Indemnified Person(s) and/or criminal misconduct of any nature whatsoever on the Indemnified Persons or involves matters which in the reasonable opinion of the Indemnified Person(s), result in reputational loss to the Indemnified Person(s), the Indemnified Person(s) shall, upon prior written notice to the Indemnifying Party, be entitled (but not obligated) to assume conduct of the defence of such Third Party Claim at the cost and expense of the Indemnifying Parties.
- 9.5. Notwithstanding anything contained in this Agreement, in the event that any payment/deposit (including any interim payments or deposit to seek a stay) needs to be made to any Person (including any Governmental Authority) in relation to any Third Party Claim pursuant to Applicable Law, Order and/or judgement, then the Indemnifying Parties shall ensure that it makes all such payments to the relevant Person on or prior to the relevant due date. In relation to any reasonable costs and expenses incurred by the Indemnified Person(s) with respect to the Third-Party Claim, the Indemnifying Parties shall make such payment immediately within 30 (thirty) days of receipt of written notice by the Indemnified Person(s) of any Indemnified Person(s) incurring any liability and making a claim in this respect to the Indemnifying Parties, along with sufficient evidence in relation to such costs and expenses incurred.
- 9.6. In the event the Indemnifying Parties do/ does not assume the conduct of any dispute, compromise, defence, appeal or negotiations with respect to a Third Party Claim in the manner as set out above, the Indemnified Person(s) shall have the right to defend themselves against

such Third Party Claim, without waiving any right of indemnity against the Indemnifying Parties, and the costs of such defence shall be borne by the Indemnifying Parties.

- 9.7. If the Indemnified Person(s) have assumed the conduct of any dispute, defence, compromise or appeal of a Third Party Claim, the Indemnifying Parties shall reasonably cooperate with the Indemnified Person(s) in relation to the conduct of any dispute, defence, compromise or appeal of the Third Party Claim.
- 9.8. The Indemnifying Parties agree that they will not, without the prior written consent of the Indemnified Persons, settle, compromise or consent to the entry of any judgment in any pending or threatened Claim relating to a Third Party Claim, unless such settlement, compromise or consent includes an unconditional release/ discharge of the Indemnified Persons fully and completely from all liability arising or that may arise out of such Third Party Claim and such settlement does not involve obligations or liability other than monetary payments that are undertaken to be paid in full by the Indemnifying Parties with no other liabilities on the Indemnified Persons.

Limitation of Liability

- 9.9. The Indemnified Persons shall not be entitled to make any Claim:
- 9.9.1. unless the amount of liability pursuant to such Claim or series of related Claims arising out of the same or similar subject matter, facts, events or circumstances is equal to or more than INR 25,00,000 (Indian Rupees Twenty-Five Lakhs only) (*De-minimis Threshold*); and
- 9.9.2. unless the aggregate amount of liability pursuant to all Claims or series of Claims is equal to or more than INR 75,00,000 (Indian Rupees Seventy-Five Lakhs only) (*Basket Threshold*).
- 9.10. Upon reaching the Basket Threshold, the Indemnified Persons shall be entitled to claim the entire amount of the Losses that exceeds the De-minimis Threshold and not only the amount that exceeds the Basket Threshold.
- 9.11. The maximum aggregate liability of the Indemnifying Parties in respect of (i) any Claims under Clauses 9.1(i), 9.1(ii) and 9.1(iii) shall not exceed INR 25,00,00,000 (Indian Rupees Twenty Five Crores), *provided that*:
- 9.11.1. any Claims under Clause 9.1(i) for breach of any Business Warranties shall not exceed INR 15,00,00,000 (Indian Rupees Fifteen Crores); and
- 9.11.2. any Claims under Clause 9.1(ii) for breach of Clauses 7.2 to 7.6 shall not exceed INR 10,00,00,000 (Indian Rupees Ten Crores).
- 9.12. A Claim for breach of Warranties under Clause 9.1(i) may be brought by the Indemnified Persons within the claim periods set out below:
- 9.12.1. the right of the Indemnified Persons to make any Claims relating to breach of Fundamental Warranties under Clause 9.1(i), shall be in perpetuity from the Closing Date;
- 9.12.2. the right of the Indemnified Persons to make any Claims relating to breach of Business Warranties under Clause 9.1(i) shall be for a period of 3 (three) years from the Closing Date; and

- 9.12.3. the right of the Indemnified Persons to make any Claims relating to breach of Tax Warranties under Clause 9.1(i) shall be for a period of 7 (seven) years from the Closing Date.
- 9.13. Notwithstanding anything contained in this Agreement, it is clarified that the provisions of Clauses 9.9 to 9.12 shall not apply to Claims made pursuant to Clause 9.1(iv) above.
- 9.14. Notwithstanding anything contained in this Agreement, in no event the Indemnifying Parties shall be liable to the Indemnified Persons for any special, indirect, remote, punitive, consequential, exemplary or incidental damages arising under or as a result of this Agreement (or the termination hereof), including, without limitation, the Loss of prospective profits, or on account of expenses, investments or commitments in connection with the business or goodwill of the Company.
- 9.15. Any Loss suffered by the Company as a result of or in connection with, or arising from or in relation to the Indemnity Events shall be deemed to be a Loss for the Indemnified Persons.
- 9.16. The Indemnified Persons shall not be entitled to Claim indemnity more than once in respect of any one Loss to the extent that such indemnification would constitute double recovery because such Indemnified Persons have already received an indemnification payment in respect of such Loss, provided that the same arises out of the same cause of action.
- 9.17. In the event that any Taxes are or become payable with respect to any indemnity payments made by the Indemnifying Parties to any Indemnified Person(s) under this Clause 9 (*Indemnity*), such payments shall be grossed up by the Indemnifying Parties such that the Indemnified Person(s) receive no less than the full indemnity amount claimed by such Indemnified Person(s) under this Clause 9 (*Indemnity*).
- 9.18. The Indemnifying Parties shall not be liable to the Indemnified Persons in respect of any indemnity claim for Loss under this Clause 9 arising as a result of, relating to, or in connection with:
- (a) the passing of, or any change (including any retrospective change / amendment) in the Applicable Law or, a change in any generally accepted interpretation or application of any Law;
 - (b) any increase in the rates of Taxation made, or any retrospective imposition of Taxes by a change or clarification in any Applicable Law pertaining to Tax;
- 9.19. The rights of the Indemnified Persons under this Clause 9 (*Indemnity*) shall be the sole monetary remedy available to the Indemnified Persons under this Agreement, but in addition to, and without prejudice to, any other non-monetary rights and remedies available to such Indemnified Persons under Applicable Law, at equity or otherwise, including, the right to seek specific performance, rescission, restitution or other injunctive reliefs, all of which are preserved in entirety and remain unqualified.
- 9.20. To the extent a Warranty is qualified, excepted or excluded on account of matters disclosed in the Disclosure Letter and/or Updated Disclosure Letter as per and in accordance with the provisions of this Agreement, the Indemnified Persons shall not be entitled to claim any indemnity for any Loss under this Clause 9.1(i) for breach of such Warranty in respect of such disclosed matters.
- 9.21. Notwithstanding anything else contained herein, the Indemnifying Parties shall have no liability and shall not be under any obligation to indemnify the Indemnified Persons in respect of any

claims for Losses which are based upon a liability which is contingent, unless and until such contingent liability crystalizes and becomes an actual liability.

- 9.22. The Indemnifying Parties shall not be liable for any claim or Loss to the extent that such Loss has arisen (or increased) or is otherwise solely attributable to any voluntary act or omission of the Indemnified Persons.
- 9.23. The Parties hereby agree that the obligation of the Indemnifying Parties to indemnify the Indemnified Persons under Clause 9 of this Agreement shall come into effect only on the Closing Date

10. TERMINATION

10.1 This Agreement can be terminated prior to Closing only under the following circumstances:

- (i) if the Closing has not occurred by 11.59 p.m. on the Long Stop Date or any extension thereof as mutually agreed in writing by the Parties, the Buyer at its sole option may terminate this Agreement with immediate effect;
- (ii) the Parties may, by mutual agreement in writing, terminate this Agreement prior to the Long Stop Date, provided that Closing has not occurred on or before the date of such termination; or
- (iii) upon the occurrence of a Material Adverse Effect, which, if curable, is not cured within 30 (thirty) days after being notified in writing of the same or such other mutually agreed time period by the Sellers and the Buyer, the Buyer at its sole option may terminate this Agreement with immediate effect; or
- (iv) by the election of the Seller, if the Buyer has failed to issue and allot the respective portion of the Subscription Shares on the Closing Date pursuant to the terms of this Agreement.

10.2 In the event of termination of this Agreement under this Clause 10 (*Termination*), none of the Parties (or their respective Affiliates) shall have any claim under this Agreement against the other Parties (or their Affiliates) except for claims in respect of any rights and liabilities which have accrued before termination or under any of the Surviving Provisions (*as defined below*).

11. CONFIDENTIAL INFORMATION

11.1 Save in accordance with the terms of this Agreement, each of the Parties undertakes to the other Parties that it will not, and will procure that its respective Affiliates, officers, nominee directors if any, employees, agents, officers, representatives, subsidiaries will not, during the period of this Agreement and after its termination (for whatever reason) use or divulge to any person, or publish or disclose or permit to be published or disclosed, any Confidential Information or proprietary information or documents relating to the Company or any shareholder (as the case may be) which it has received or obtained, or may receive or obtain (whether or not, in the case of documents, they are marked as confidential).

11.2 The obligations provided for in Clause 11.1 above shall not apply to:

- (i) the disclosure of information which the recipient can reasonably demonstrate by written proof is in the public domain through no fault of the recipient Party;
- (ii) the disclosure of information to the extent it is required by Applicable Law or to give effect to the terms of this Agreement, or as required by any stock exchange or any

regulatory authority to which the Party is subject, or pursuant to an order of any Governmental Authority (in which case the Party concerned shall, if practicable and permitted by Applicable Law, supply an advance copy of the required disclosure to each of the other Parties and incorporate any additions or amendments reasonably requested by them);

- (iii) the disclosure of information in confidence to any professional adviser of any of the Parties for the purposes of obtaining advice or assistance in connection with its obligations or rights, or the obligations or rights of any of the other Parties hereunder;
- (iv) disclosure of information made to a Party's Affiliates, auditors, lenders, bankers and each of their respective professional advisers, auditors, rating agencies and bankers on a 'need to know basis'; and
- (v) to the extent that any information, similar to the Confidential Information, shall have been independently developed by a Party without reference to any Confidential Information furnished by any other Party.

11.3 Save as permitted herein, no Party may issue any press release or make any public statement or other communication about the matters in this Agreement or any document referred to in it unless it is required by Applicable Law, or by a stock exchange or regulatory authority to which the Party is subject. Each Party consents to the other Party publicizing (whether by its website or otherwise) any information about the Company which is already in the public domain (unless the information is in the public domain as a result of a breach of this Agreement by such Party).

11.4 A press release, public statement or other communication about the matters in this Agreement or any document referred to in it may be made by a Party with the prior written consent of the other Parties (which shall not be unreasonably withheld).

12. ANNOUNCEMENTS

12.1 Subject to Clause 12.2 below, none of the Parties shall, before or after Closing, make or send (and shall procure that their respective Affiliates, officers, nominee directors if any, employees, agents, officers, representatives, subsidiaries do not make or send) a public announcement, communication or circular concerning the Agreement or the transactions contemplated herein unless it has first obtained the written consent of the other Parties (which consent shall not be unreasonably withheld).

12.2 Clause 12.1 above shall not apply to a public announcement, communication or circular required by Law, by a rule of a stock exchange to which the announcing party is subject or submits or by a Governmental Authority to which the announcing party is subject or submits, whether or not the requirement has the force of Law, provided that the public announcement, communication or circular shall, so far as is practicable and permissible by Law, rule or regulation, be made after consultation with (in the case of the Buyer) the Sellers or (in the case of the Sellers) the Buyer and after taking into account the reasonable requirements of the relevant Parties as to its timing, content and manner of making.

12.3 The restrictions contained in this Clause 12 (*Announcements*) shall continue to apply after Closing without limit in time.

13. COSTS

13.1 Except where this Agreement provides otherwise and subject to Clause 13.2 below, each Party shall bear its own costs and expenses relating to the negotiation, preparation, execution and performance by it of this Agreement and of each document referred to in it.

- 13.2 Stamp duty payable on this Agreement, on the purchase of the Sale Shares, and on the issuance and allotment of the Subscription Shares shall be borne equally by Sellers (on the one part) and the Buyer (on the other part).

14. GENERAL

- 14.1 Each Party shall, at all times, act in good faith in the discharge of its respective obligations under this Agreement and not do anything which would constitute a contravention of its terms. Each Party shall do all such acts, deeds and things and execute all such deeds, documents and writings as may be necessary for the consummation of the transactions as set out in this Agreement in the manner contemplated hereunder.
- 14.2 Upon any termination of this Agreement, each Party's rights and obligations shall cease immediately except in respect to the provisions of Clause 1 and Clauses 10 to 16 (*Surviving Provisions*) which will continue in full force and effect, but termination does not affect a Party's accrued rights and obligations at the date of termination.
- 14.3 The failure to exercise or delay in exercising a right, power or remedy provided by this Agreement or any document entered into pursuant to it or by Law does not impair or constitute a waiver of the right, power or remedy or an impairment of or a waiver of other rights, power or remedies. No single or partial exercise of a right, power or remedy provided by this Agreement or by Law prevents other or further exercise of the right, power or remedy or the exercise of another right, power or remedy.
- 14.4 The Parties' rights and remedies contained in this Agreement are several, cumulative and not exclusive of rights or remedies provided by Law.
- 14.5 Except to the extent that they have been performed and except where this Agreement provides otherwise, the obligations contained in this Agreement remain in full force and effect after Closing.
- (i) If at any time any provision of this Agreement is or becomes illegal, invalid or unenforceable in any respect under the Law of any jurisdiction, that shall not affect or impair:
 - (ii) the legality, validity or enforceability in that jurisdiction of any other provision of this Agreement; or
 - (iii) the legality, validity or enforceability under the Law of any other jurisdiction of that or any other provision of this Agreement.
- 14.6 Any amendment, modification or variation of this Agreement is valid only if it is in writing and signed by or on behalf of all the Parties.
- 14.7 This Agreement together with the other Transaction Documents sets out the entire agreement and understanding between the Parties with respect to the subject matter hereof. The Transaction Documents supersede any and all previous letters of intent, term sheet, confidentiality agreements, heads of terms, prior discussions and correspondence exchanged between any of the Parties in connection with the transactions referred to herein, all of which shall not have any further force or effect.
- 14.8 If there is any conflict between the terms of this Agreement and any other Transaction Document, this Agreement shall prevail (as between the Parties) unless (a) such other Transaction Document expressly states that it overrides Agreement in the relevant respect, or (b) the Parties are either also parties to the other Transaction Documents or otherwise expressly

the Parties to this Agreement agree in writing that such Transaction Document shall override this Agreement in that respect.

- 14.9 Nothing in this Agreement (or any of the arrangements contemplated herein) shall be deemed to constitute a partnership or joint venture between the Parties, nor constitute any Party as the agent of another Party for any purpose, or entitle any Party to commit or bind another Party in any manner.
- 14.10 None of the Sellers or the Company may assign, transfer, declare a trust of the benefit of or in any other way alienate any of its rights or obligations under this Agreement, whether in whole or in part, without the prior written consent of the Buyer. Any purported assignment in breach of this Clause 14.10 shall be void and confer no rights on the purported assignee.

15. NOTICES

- 15.1 A notice or other communication under or in connection with this Agreement (a *Notice*) shall be:

- (i) in writing;
- (ii) in the English language; and
- (iii) delivered personally or sent by an internationally recognized courier service to the Party due to receive the Notice to the address as set out below or sent as an attachment to the e-mail address as set out below, or another address, e-mail address and/or person specified by that Party by not less than 7 (seven) days' written notice to the other Party received before the Notice was dispatched:

Buyer

For the attention of:	Address: Glass Wall Systems (India)	Email: jawahar@glasswallssystem.com
Mr. Jawahar Hemrajani	Limited	
	503-504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Mumbai, Maharashtra, India, 400013	

Company

For the attention of:	Address:	Email: amith@oriafenestrations.in
Mr. Amit Hemrajani	Yes Systems Private Limited	
	503, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound,	

N.M. Joshi Marg,
Lower Parel (East),
Mumbai,
Maharashtra, India,
400013

Sellers

For the attention of: Address: Email:

Mr. Amit Hemrajani B-2702, Plot No.5, amith@oriafenestrations.in
Tharwani Heights,
Sector 18, Palm
Beach Road,
Sanpada, Navi
Mumbai, Thane
400705

Mr. Eshan Hemrajani B-2701-2702, Plot eshan@glasswallssystem.com
No.5, Tharwani
Heights, Sector 18,
Palm Beach Road,
Sanpada, Navi
Mumbai, Thane
400705

Mrs. Vinne B-2702, Plot No.5, jawahar@glasswallssystem.com
Hemrajani Tharwani Heights,
Sector 18, Palm
Beach Road,
Sanpada, Navi
Mumbai, Thane
400705

15.2 Unless there is evidence that it was received earlier, a Notice is deemed given if:

- (i) delivered personally, when hand delivered at the address referred to in Clause 15.1 (iii) above;
- (ii) sent by an internationally recognized courier service, on the third Business Day following the date of dispatch;
- (iii) if sent by e-mail, at the time that the e-mail is sent, unless the e-mail is not received owing to any failure of the recipient's information technology systems,

provided that in any case, where delivery occurs outside Working Hours, notice shall be deemed to have been received at the start of Working Hours on the next following Business Day.

16. GOVERNING LAW AND DISPUTE RESOLUTION

- 16.1 This Agreement shall be governed by and be construed in accordance with the laws of the Republic of India. Subject to Clause 16.2 below, the courts in Mumbai will have exclusive jurisdiction.
- 16.2 All disputes, differences or Claims arising out of or in connection with this Agreement including, any question regarding its existence, validity, construction, performance, termination or alleged violation shall be referred to and finally resolved by arbitration in Mumbai in accordance with the rules of the Mumbai Centre for International Arbitration (*MCIA Rules*) for the time being in force, which rules are deemed to be incorporated by reference in this Clause. A Party seeking to commence arbitration under this Clause 16.2 shall first serve a written notice, specifying the matter or matters to be so submitted to arbitration, on the other Parties hereto.
- 16.3 The seat and venue of such arbitration shall be in Mumbai and all proceedings shall be conducted in the English language.
- 16.4 The Parties that are party to each dispute (*Disputing Parties*) shall jointly appoint a sole arbitrator mutually acceptable to the Disputing Parties. In the event of failure to agree upon a sole arbitrator within 30 (thirty) days from the date of notice referred to Clause 16.2 above, one arbitrator each shall be appointed by each of the Disputing Parties. The arbitrators so appointed shall appoint the final arbitrator who shall act as the Chairman of the arbitration tribunal, and who shall have a casting vote in the event of deadlocks or ties. In the event that the arbitral panel is not constituted within 60 (sixty) days of raising of any disputes, the Disputing Parties shall forthwith approach the Mumbai Centre for International Arbitration, which shall appoint one arbitrator in accordance with the rules prescribed by the Mumbai Centre for International Arbitration, who shall be the sole arbitrator.
- 16.5 All Claims and counterclaims shall, to the extent such Claims or counterclaims are known at the time any arbitration is commenced, shall be consolidated and determined in the same arbitration proceedings.
- 16.6 Deposits to cover the costs of arbitration shall be shared equally by the Disputing Parties. The award rendered by the arbitrator or arbitrators shall, in addition to dealing with the merits of the case, fix the costs of the arbitration and decide which of the Parties shall bear such costs or in what proportions such costs shall be borne by the Parties hereto.
- 16.7 The award rendered by the arbitrator or arbitrators shall be final, conclusive and binding on all Parties to this Agreement.
- 16.8 Each Party shall co-operate in good faith to expedite, to the maximum extent practicable, the conduct of any arbitral proceedings commenced under this Agreement.

[Signature pages follow]

SCHEDULE 1

DETAILS OF SELLERS AND SALE SHARES

S. No	Name of Seller	Number of Equity Shares held on Execution Date	% of Share capital (on Fully Diluted Basis) on Execution Date	Number of Sale Shares
1.	Amit Hemrajani	20,000	40%	20,000
2.	Eshan Hemrajani	20,000	40%	20,000
3.	Vinne Hemrajani	10,000	20%	10,000
	Total	50,000	100%	50,000

SCHEDULE 2

DEFINITIONS AND INTERPRETATION

1. Definitions

In this Agreement:

281 Report means, in respect of each Seller, a report from a chartered accounting firm (on a reliance basis and in an Agreed Form as on one day prior to Closing Date) providing a status of pending or ongoing claims, audits, suits, proceedings, disputes, demands or investigations or notices or appeals or litigation against or with respect to such Seller under Section 281 of the IT Act (along with necessary supporting documentation including details/ screenshots as reflected on the income-tax and TRACES portal), which shall confirm that: (a) there are no pending Tax demands and / or proceedings against such Seller under the IT Act, in relation to which such Seller has received any notice under the IT Act other than as disclosed in the 281 Report; and (b) there are no notices under Rule 2 of the Second Schedule of the IT Act which has been served upon such Seller;

Accounts means the audited Financial Statements of the Company for the Financial Years 2021-22, 2022-23 and 2023-24 and unaudited Financial Statements of the Company for the Financial Year 2024-25, together with the auditors' and directors' reports and the notes and schedules to the audited Financial Statements, such Financial Statements, comprising a balance sheet, profit and loss account and cash-flow statement;

Accounts Date means 31 March 2025;

Act means the Companies Act, 2013 to the extent notified by the Government of India and currently in force) and the rules, circulars and notifications thereunder and any amendments, re-enactments or other statutory modifications thereof for the time being in force;

Affiliate of a Person (for the purpose of this definition, a **Subject Person**) means (i) in the case of any Subject Person other than a natural Person, any other Person that, either directly or indirectly through one or more intermediate Persons, Controls, is Controlled by or is under common Control with the Subject Person; and (ii) in relation to a natural person, any other Person that, either directly or indirectly, is Controlled by the Subject Person, and/or any Relative of such natural person;

Agreed Form means a document in a form that has been mutually agreed between the Buyer, the Company and the Sellers in writing, or confirmed by e-mail, by or on behalf of the Buyer, the Sellers or the Company;

Ancillary Entities mean the entities set out in **Schedule 10** hereto;

Applicable Law or **Law** means all applicable treaties, statutes, laws, enactments, acts of parliament or legislature, codes, regulations, ordinances, rules, notifications, by-laws, policies, directions, directives, guidelines, circulars or other requirements of any Governmental Authority in any relevant jurisdiction or other similar form of decision of, or determination by, or any interpretation having the force of law, by any Governmental Authority having jurisdiction over the matter in question, whether in effect as at the date of this Agreement or thereafter;

Articles means the articles of association of the Company;

Assets means any assets or properties of every kind, nature, character and description (whether immovable, movable, tangible, intangible, absolute, accrued, fixed or otherwise) as operated, hired, rented, owned or leased by a Person from time to time, including cash, cash equivalents, receivables,

securities, accounts and note receivables, Real Property (*as defined below*), plant and machinery, equipment, trademarks, brands, other Intellectual Property (*as defined below*), raw materials, inventory, furniture, fixtures and /or insurance;

Authorisation(s) means any permit, permission, license, approval, consent, clearance, waiver, grant, franchise, concession, no objection certificate, registration, or other authorization of whatever nature and by whatever name called which is, or is required to be, made to, or granted by any Person under any Applicable Law or Contract;

Board means the board of Directors of the Company in office at the applicable time;

Business Day means a day other than a Saturday or Sunday or public holiday in Mumbai, on which banks are generally open for transacting normal banking business (except through online banking);

Business Warranties means the Warranties in Part B of Schedule 5;

Charter Documents means collectively, the memorandum of association and articles of association of the Company, as amended from time to time;

Claim means any demand, action, cause of action, costs, liability or expense, reasonable professional fees and all costs incurred in pursuing any of the foregoing or any proceeding relating to any of the foregoing;

Closing means completion of the (i) purchase by the Buyer and sale by the Sellers of the Sale Shares; and (ii) issuance of the Subscription Shares by the Buyer to the Sellers in accordance with Clause 3, Clause 6 and Schedule 3 of this Agreement;

Confidential Information means information, in whatever form, relating to the Business, products, affairs, operations, plans, performance, finances, suppliers, clients, customers and counterparties of the Company for the time being confidential to it or treated by it as such, including trade secrets (including, without limitation, technical data and know-how) and other Intellectual Property relating to the Company;

Control together with its grammatical variations, when used with respect to any Person, means and includes: (i) the power to direct or influence or procure the direction in any manner, the management and policies of such Person, directly or indirectly, whether through the ownership of more than 50% (Fifty per cent) of the voting power or vote carrying securities or other legal interest, or by contract or by the articles of association or management rights or shareholder's agreements or voting agreements or otherwise howsoever; or (ii) the ability to direct the casting of more than 50% (Fifty per cent) of the votes exercisable at general meetings or meetings of other governing body of a Person on all, or substantially all, matters or of the issued share capital of such Person; or (iii) the ability to control the composition or the decisions of the board of directors or a governing body of a Person by controlling the appointment or the governing body of a Person, designated partners or members of the governing body of a Person (as the case may be);

Contract means any writing, agreement, undertaking, document, memorandum of understanding, term sheet, work order, purchase order, statement of work, supply order, agreement for sale, lease, sublease, license, sublicense, note, or other contract or commitment of any nature, executed by the Company or by which the Company is bound by and all right, title and interest therein;

Director means any director of the Company at the applicable time;

Disclosure Letter means the disclosure letter (in a format set out in **Schedule 9**) in Agreed Form dated as of the Execution Date, containing specific Disclosures against Business Warranties and Tax Warranties, provided by the Company and the Sellers to the Buyer on the Execution Date;

Encumbrance means, as the case may be, any encumbrance, including without limitation (i) a mortgage, pledge, lien, claim, charge or hypothecation or escrow or equitable interest or custody arrangement or negative lien or lease or title retention or deposit by way of security or beneficial ownership (including usufruct and similar entitlements), or any other interest held by a third Person; (ii) security interest or other encumbrance of any kind securing, or conferring any priority of payment in respect of, any obligation of any Person, including any right granted by a transaction which, in legal terms is not the granting of security but which has an economic or financial effect similar to the granting of security under Applicable Law; (iii) any proxy, power of attorney in relation to the shares or other assets, voting trust agreement, interest, contract, option or right of pre-emption, right of first offer, right of first refusal, drag-along right or other transfer restriction in favour of any Person; (iv) any adverse claim as to title, possession or use conditional sale contract, co-sale contract, trust (or other title exception of whatsoever nature); (v) other commitment, restriction, limitation or encumbrance of any kind or nature whatsoever including restriction on use, voting rights, transfer, receipt of income or exercise of any other attribute of ownership; and/or (vi) a Contract, whether conditional or otherwise, to give or refrain from giving any of the foregoing, and the term **Encumber** shall be construed accordingly;

Equity Shares or Shares means equity shares of the Company having a face value of INR 10 (Indian Rupees Ten) each;

Financial Statements, with respect to a period, shall mean the following documents: (i) balance sheet, (ii) profit and loss account, (iii) statements of income and cash flows and (iv) statement of changes in shareholders' equity (prepared on a consolidated basis or standalone basis, as may be applicable), together with all audit reports, notes, reports, statements or documents included in or annexed to them in each case, of the Company for such period;

Financial Year / FY means the period from 1 April of a calendar year to 31 March of the following calendar year;

Fully Diluted Basis means the assumption that the exercise, and as may be applicable, the conversion of any notes, options (including employee stock options), warrants, contracts and instruments convertible into Shares, whether or not compulsorily convertible, outstanding on the date of calculation, have been exercised or exchanged for or converted into Shares and all Shares issuable pursuant to contractual or other obligations, have been issued;

Fundamental Warranties means the Warranties in Part A of Schedule 5;

Governmental Approval means any consent, approval, authorization, waiver, permit, grant, franchise, concession, agreement, license, certificate, exemption, order, registration, declaration, filing, report or notice, of, with or to, as the case may be, any Governmental Authority;

Governmental Authority means any national, federal, state, local, municipal district or other sub-division governmental or quasi-governmental authority, regulatory authority, statutory authority, government department, agency, commission, board, tribunal or court or other Law, rule or regulation-making entity, in each case having jurisdiction over the matter in question pursuant to Applicable Law in the relevant jurisdiction with respect to a Party;

Indebtedness shall include:

- (a) moneys borrowed;
- (b) any amount raised by acceptance under any acceptance credit facility or equivalent;
- (c) any amount raised pursuant to any note purchase facility or the issue of bonds, notes, debentures, loan stock or any similar instrument;

- (d) the amount of any liability in respect of any lease or hire purchase contract which would, in accordance with Indian generally accepted accounting practices, be treated as a finance or capital lease;
- (e) receivables sold or discounted (other than any receivables to the extent they are sold on a non-recourse basis);
- (f) any amount raised under any other transaction (including any forward sale or purchase agreement) having the commercial effect of a borrowing, including the Sellers' or the Company's obligation to pay in relation to any call or put option relating to any Equity Shares owned by a Party in the Company, as the case may be;
- (g) shares which are expressed to be redeemable or any shares or instruments convertible into shares or any shares or other securities which are otherwise the subject of a put option or any form of guarantee;
- (h) any amount of any liability under any advanced or deferred purchase agreement if one of the primary reasons behind the entry into such agreement is to raise finance; and
- (i) any obligation or liability which is treated as a financial debt under the Insolvency and Bankruptcy Code, 2016;

INR means Indian Rupees;

IT Act means the Income Tax Act, 1961 and finance acts (to the extent that such finance acts amend or relate to the taxes, interest and penalties imposed under the Income Tax Act, 1961, and surcharge and health and education cess) passed in India each financial year, read with the Income Tax Rules, 1962, and any statutory modification or re-enactment or amendments thereof for the time being in force, together with all applicable byelaws, rules, regulations, orders, ordinances, policies, directions, and the like issued thereunder;

Intellectual Property means all patents, patent applications, trademarks, service marks, logos, get-up, trade names, internet domain names, rights in designs, copyrights, software (including rights in computer software) and moral rights, databases, trade secrets, processes and models, rights in know-how, confidential information and other intellectual property rights, in each case whether registered or unregistered and including applications for registration, and all rights or forms of protection having equivalent or similar effect anywhere in the world;

Long Stop Date means 45 (forty five) days from the Execution Date or such other extended period as may be agreed between the Seller and Buyer;

Losses or Loss means all actual and direct losses, liabilities, demands, fines, reasonable costs and expenses, damages, Taxes, payments required to be made under orders, judgments, decrees or other directions of any Governmental Authority including, in each case, interests and penalties with respect thereto and reasonable out-of-pocket expenses, including reasonable attorneys' fees and disbursements, amounts paid in settlement and court costs, but excluding all indirect, consequential damages and special, remote, punitive losses, loss of profit (to the extent it is an indirect loss), loss of goodwill, loss of business, and loss of opportunity and diminution in value of Shares;

Material Adverse Effect means any event, occurrence, fact, condition, change, development or effect that, individually or in the aggregate, has had or may reasonably be expected to have a material adverse effect on:

- (i) the ability of any of the Parties to consummate the transactions contemplated herein or to perform its obligations hereunder;
- (ii) the Company's, financial or otherwise, operations, results of operations, assets, liabilities or the Business as now conducted, or
- (iii) the validity or enforceability of this Agreement or any of the transactions contemplated hereunder, or of the rights or remedies of the Buyer hereunder;

Ordinary Course with respect to any action taken by a Person means that action:

- (a) is consistent in nature, scope and magnitude with the past practices of such Person and is taken in the ordinary course of the normal day-to-day operations of such Person;
- (b) does not require Authorisation by the shareholders of such Person and does not require any other separate or special Authorisation of any nature; and
- (c) is similar in nature, scope and magnitude to actions customarily taken, without any separate or special Authorisation, in the ordinary course of the normal, day-to-day operations of other Persons that are in the same line of business as such Person;

Person means a corporation, Hindu undivided family, association, unincorporated association, unincorporated organization, body corporate, partnership (general or limited), joint venture, estate, trust, limited liability company, limited liability partnership or any other legal entity (whether or not having a separate legal personality), individual or government, state or agency of a state;

Related Party means in relation to a specified Person, any Person: (a) that is an Affiliate; (b) that serves as a director, officer, partner, executor, or managing trustee of such specified Person; (c) in which such specified Person serves as a director, officer, partner, executor, or trustee; (d) in which such specified Person holds a material interest; (e) that holds a material interest in such specified Person, and shall also include the persons/entities as specified under the definition of related party under the Act. With respect to an individual, **Related Party** shall include any individual who is a relative (as defined in the Act) of such individual;

Real Property means all lands, all buildings, structures, erections, improvements, appurtenances and fixtures situated on or forming part of such lands and shall include premises situated in a building or structure;

Shareholder means a Person who holds any Equity Shares or other Securities in the Company;

Tax or Taxes (including with correlative meaning **Taxation**) mean all applicable taxes, assessments and other charges, duties, impositions and similar liabilities imposed by a Tax Authority as may be applicable from time to time, including income tax; capital gains tax; sales tax; buyback tax under Section 115QA of the IT Act, 1961; equalisation levy; value added tax; excise duty (including, without limitation, central and state excise); service tax; goods and service tax; customs duty; local body tax; octroi; entry tax; wealth tax; gift tax; property tax; any tax in relation to collection, gains, franchise, property (whether immovable or movable), employment, license, payroll, occupation; transfer taxes; governmental charges, fees, deductions or withholdings by whatever name they are called in the nature of tax; levies; and shall include any interest, fines, penalties related thereto;

Tax Authority means any Governmental Authority competent to impose any liability to Tax, or assess or collect any Tax;

Tax Proceeding means writs, suits, recovery proceedings, demands, claims, notices, representative assessee related proceedings, assessment proceedings, tax deduction at source related proceedings, re-assessment proceedings, interest related proceedings, penalty related proceedings, rectification, stay of demand related proceedings, appeals (at any level) and all other similar and incidental actions, in each case, in respect of Tax;

Tax Warranties means the Warranties in Part C of Schedule 5;

Third Party means any Person who is not a Party to this Agreement;

Third Party Rights means any interest or equity of any Person (including any right to acquire, option or right of pre-emption or conversion) or any mortgage, charge, pledge, lien, assignment, hypothecation, security interest, title retention or any other security agreement or arrangement, or any agreement to create any of the above;

Transaction Documents means this Agreement, documents related to the transfer of the Sale Shares from the Sellers to the Buyer, and allotment of Subscription Shares by the Buyer to the Sellers under this Agreement and any other document(s) incidental or ancillary thereto;

Transferred Properties means the premises (together with all structures thereon) at (i) Plot No. A-471, TTC MIDC Mahape, Navi Mumbai, Thane, Maharashtra, India, 400710; and (ii) Plot no. M-59, Additional Ambarnath Industrial Area, Phase-3, Opp. Hotel Rangoli Garden, Katai-Badlapur Pipeline Road, Pale;

Updated Disclosure Letter means the updated disclosure letter (if any) (in a format set out in **Schedule 9**) in Agreed Form, delivered by the Company to the Purchasers on the Closing Date, updating the Disclosure Letter by way of specific Disclosures against the Business Warranties and Tax Warranties solely in relation to events that have occurred between the Execution Date and the Closing Date;

Warranties mean the representations and warranties provided by the Sellers and the Company as set out in **Schedule 5**; and

Working Hours means 9.30 am to 5.30 pm in the relevant location on a Business Day.

2. Interpretation

2.1. In this Agreement, a reference to:

2.1.1. a clause, paragraph or schedule, unless specified otherwise, is a reference to a clause or paragraph of, or schedule to, this Agreement, and the schedules form part of this Agreement;

2.1.2. the singular shall include the plural, and vice versa;

2.1.3. one gender shall include each gender; and

2.1.4. a time of the day is to the time in Mumbai, India.

2.2. The ejusdem generis principle of construction shall not apply to this Agreement. Accordingly, general words shall not be given a restrictive meaning by reason of their being preceded or followed by words indicating a particular class of acts, matters or things or by examples falling within the general words. Any phrase introduced by the terms “other”, “including”, “include” and “in particular” or any similar expression shall be construed as illustrative and shall not limit the sense of the words preceding those terms.

2.3. Where there is any inconsistency between the definitions as set out in this Schedule and the definitions set out in any clause or any other Schedule, then, for the purposes of construing such clause or Schedule, the definitions set out in such clause or Schedule shall prevail.

2.4. The headings in this Agreement do not affect its interpretation.

2.5. In this Agreement:

- (i) where a period expressed in days, weeks, months or years is to be calculated from the moment at which an event occurs or an action takes place, the day during which that

event occurs or that action takes place shall not be counted as falling within the period in question;

- (ii) a period expressed in weeks, months or years shall end with the expiry of whichever day in the last week, month or year (as applicable) of such period is the same day of the week (in the case of weeks), or falls on the same date (in the case of months or years), as the day on which the event or action from which the period is to be calculated occurred or took place. If, for a given period expressed in months, the last day of such period does not fall during the last month expressed to be in such period, such period shall end on the last day of that last month; and
- (iii) This Agreement has been negotiated and reviewed by the Parties and their respective counsel and professional advisers. Accordingly, in interpreting this Agreement, no regard shall be had to which Party or its counsel drafted any provision being interpreted.

SCHEDULE 3 CLOSING REQUIREMENTS

1. On the Closing Date, the Parties shall carry out the following actions in the following sequence, which shall be deemed to take place simultaneously:
 - 1.1. The Sellers shall deliver to the Buyer, the executed Section 281 Reports, all dated as of the Closing Date, and the executed certificate evidencing the fair market value of the Sale Shares as per sections 50CA and 56(2)(x) of the IT Act read with rules 11U, 11UA and 11UAA of the Income-tax Rules, 1962, from a merchant banker or an independent chartered accountant which certificate shall be on reliance basis and in a form acceptable to Purchaser, and date of the valuation being no later than 30 (thirty) days prior to the Closing Date;
 - 1.2. The Company and the Sellers shall deliver to the Buyer, the executed Updated Disclosure Letter in Agreed Form (if any);
 - 1.3. The Sellers shall issue duly signed delivery instructions slips to their respective depository participants, instructing such depository participants for the transfer of their respective Sale Shares to the demat account of the Buyer, details of which demat account shall have been communicated by the Buyer to the Sellers in writing at least 7 Business Days prior to the Closing Date, and provide copies of such duly signed delivery instruction slips to the Buyer and the Company.
 - 1.4. Immediately upon the credit of the Sale Shares in the demat account of the Buyer, the Company shall convene a Board meeting which is held at shorter notice to:
 - (a) take on record the transfer of the Sale Shares from the Sellers to the Buyer;
 - (b) approve the appointment of Mr. Prakash Bagla as an additional Director of the Company; and
 - (c) authorise any Director or officer of the Company to update the relevant statutory registers of the Company to record (a) and (b) above.
 - 1.5. Immediately upon the credit of the Sale Shares in the demat account of the Buyer, the Buyer shall:
 - (a) convene a board meeting of the Buyer at shorter notice to approve issuance of the Subscription Shares to the Sellers and to convene an extraordinary general meeting of its shareholders;
 - (b) convene an extraordinary general meeting of its shareholders to approve the issuance of the Subscription Shares to the Sellers;
 - (c) file Form MGT-14 with the Registrar of Companies in relation to the resolutions passed in (b) above;
 - (d) deliver to the Sellers private placement offer cum application letters in Form PAS-4 of Companies (Prospectus and Allotment of Securities) Rules, 2014 for issuance of the Subscription Shares to the Sellers;
 - (e) convene a board meeting of the Buyer at shorter notice to approve the allotment of the Subscription Shares to the Sellers; and
 - (f) deliver to the Sellers duly stamped letters of allotment representing the Subscription Shares.
2. Upon Closing, the Sellers shall hand over to the Company, in physical or digital form, all books, documents, records and information relating to the Company (including all contracts, deeds, warranties, invoices / purchase orders, customer / supplier information, approvals, notices from and correspondence with Government Authorities, customers and vendors) and which are in possession of the Sellers.

3. Within 10 (ten) Business Days of the Closing Date, the Company shall make filing in DIR-12 with the Registrar of Companies for the appointment of Director as per paragraph 1.4(b) above, and provide copy of such filing and payment challan, together with certified true copies of the Board resolutions passed as per paragraph 1.4 above, and the certified true extracts of updated statutory registers of the Company, to the Buyer.
4. Within 15 (fifteen) Business Days of the Closing Date, the Company shall provide to the Buyer an updated beneficiary position (BENPOS) reflecting the Buyer as the legal and beneficial owner of the Sale Shares.
5. Within 20 (twenty) Business Days of the Closing Date, the Buyer shall file Form PAS-3 with the Registrar of Companies for the allotment of the Subscription Shares to the Sellers, and provide a copy of such filing and payment challan, together with certified true copies of the board and shareholder resolutions passed as per paragraph 1.5 above, and the certified true extracts of the updated statutory registers of the Buyer, to the Sellers.
6. Within 25 (twenty five) Business Days of the Closing Date, the Buyer shall file application(s) with its depository /registrar and transfer agent for credit of the Subscription Shares into the Sellers' respective demat accounts.

SCHEDULE 4

CONDITIONS PRECEDENT

1. There shall have been no breach of any of the Warranties as on the Execution Date and the Closing Date.
2. There shall have been no breach of any of the obligations of the Sellers or the Company under this Agreement.
3. The Company and the Sellers shall have obtained all Authorisations, approvals, permits, consents, and waivers, necessary or appropriate, for consummation of the transactions contemplated in this Agreement whether under Applicable Law, contract or otherwise and shall have provided the Buyer with satisfactory evidence thereof.
4. No event or circumstance shall have occurred that has resulted in or gives rise to a Material Adverse Effect.
5. No injunction, restraining order, or any other legal or regulatory restraint or prohibition being in effect or shall have been issued or made by any Governmental Authority, which prevents or restricts Closing, or the consummation of the transactions and arrangements contemplated in this Agreement in relation to the Sale Shares.
6. The Sellers shall have caused the Company to deliver to the Buyer a draft certificate evidencing the fair market value of the Sale Shares as per sections 50CA and 56(2)(x) of the IT Act read with rules 11U, 11UA and 11UAA of the Income-tax Rules, 1962, from a merchant banker or an independent chartered accountant which certificate shall be on reliance basis and in a form acceptable to Buyer. The date of the valuation shall be no later than 30 (thirty) days prior to the Closing Date.
7. The Sellers shall have delivered to the Buyer drafts of the 281 Reports for each Seller along with necessary supporting documentation, to the satisfaction of the Buyer.
8. The Sellers shall have provided to the Buyer of certified true copies of the resolutions of the Board of Directors of the Company in a form acceptable to the Buyer, approving or ratifying this Agreement and authorising the Person(s) signing this Agreement on their respective behalf to so sign, and such other resolutions as required to give effect to the actions contemplated in this Agreement.
9. The Updated Disclosure Letter shall be in Agreed Form.
10. The Company shall have obtained a no dues certificate (in Agreed Form) from each of its Related Parties (except the Buyer).
11. The Company shall have entered into definitive agreements at arm's length price with each of its Related Parties (except the Buyer), documenting their respective rights and obligations in relation to subsisting transactions with such Related Parties, scope / nature of services, in Agreed Form.

SCHEDULE 5

COMPANY'S AND SELLERS' REPRESENTATIONS AND WARRANTIES

Part A: Fundamental Warranties

The Sellers and the Company jointly and severally represent and warrant to the Buyer that:

1. The Sellers and the Company have full power, capacity and authority to execute and deliver this Agreement and to consummate the transactions contemplated herein.
2. This Agreement has been duly and validly executed and delivered by the Sellers and the Company, and will constitute legal, valid and binding obligations on the Sellers and the Company, and shall be enforceable against the Sellers and the Company in accordance with its terms.
3. Neither entry into this Agreement nor implementation of the transactions contemplated under this Agreement including without limitation the purchase of Sale Shares by the Buyer will:
 - (i) result in violation or breach of any Applicable Laws or regulations in any relevant jurisdiction or their constitutional documents, or
 - (ii) amount to a violation or default with respect to any Applicable Laws, statute, regulation, order, decree or judgment of any court or any governmental or regulatory authority in any jurisdiction, or any contracts to which it is a party or it is bound, where, in each case, the breach, conflict or violation would adversely affect to a material extent its ability to enter into or perform its obligations under this Agreement and/or any Transaction Document to which it is a party.
4. Upon the purchase of Sale Shares by the Buyer, the Buyer shall have valid title to and shall be the sole legal and beneficial owner of the Sale Shares, free from any Encumbrance or claim or demand or Third Party Rights.
5. The Sellers and the Company (i) are not required to make any announcement, consultation, notice, report or filing, or (ii) do not require any consent, approval, registration, Authorisation or permit, in each case in connection with the execution and performance of this Agreement or any other Transaction Document to which they are parties.
6. The Company is a corporation duly organized, validly existing and in good standing under the Applicable Laws of organization and has all necessary corporate power and authority to own, operate or lease the properties and assets now owned, operated or leased by it and to carry on its Business as it is currently conducted, and duly licensed or qualified to do business under Applicable Laws and is in good standing in each jurisdiction in which the properties leased by it or the operation of its Business as currently conducted.
7. The Company is not in violation of its Charter Documents.
8. The Sellers are the sole legal and beneficial owners of 100% Shares of the Company and have full title, rights and interests in such Shares and such Shares are free from all Third Party Rights. The Sellers are entitled to transfer the full ownership of such Shares free from all Encumbrances to any Person.
9. The shareholding pattern of the Company on a Fully Diluted Basis is as set out in Schedule 1, and the Equity Shares held by the Sellers constitute 100% of the allotted and issued share capital of the

Company on a Fully Diluted Basis. There are no other shares or securities of the Company currently in existence other than the Equity Shares held by the Sellers as set out in Schedule 1. Other than the Sellers, no other persons hold any shares or securities or stock options of the Company, or otherwise have any equity or other interests or rights (exercisable now or in the future and whether contingent or not) in the Company, including the right to be allotted shares or any other securities in the Company, or to convert any loan or any other amount given to the Company to shares or securities of the Company.

10. All Shares have been duly and validly issued and allotted, there are no conditions or restrictions on the transfer of the Shares whether under any agreement, arrangement, stock certificate, constitutional documents, Applicable Laws or otherwise, and except this Agreement, there are no outstanding agreements or arrangements which provide for the allotment, issue or transfer of any share in the capital of the Company.
11. All share certificates have been duly authorized and executed, validly, issued and adequately stamped by the Company.
12. No voluntary steps have been taken by the Sellers or the Company, and no notice of any proceeding has been filed or served and no other steps have been taken (including, without limitation, any such actions which are pending or which have been threatened in writing), in each case, in relation to (i) the reorganisation, winding up, dissolution or liquidation of the Company, (ii) the appointment of a liquidator, provisional liquidator, an administrator or receiver (including an administrative receiver) in relation to the Company, (iii) proposing a composition or similar arrangement with creditors in relation to the Company, or (iv) the suspension of payments or a moratorium of any indebtedness of the Company.
13. The Company has not received any written notice or communication regarding any ongoing process in any jurisdiction by or under which:
 - (iii) it has been or may be liquidated, dissolved or struck off or placed into administration;
 - (iv) a person has been or may be appointed in connection with the enforcement of any Encumbrance over the Company; or
 - (v) any composition in satisfaction of, or moratorium in respect of, the debts of the Company, or any scheme of arrangement or compromise between it and its creditors or any class of its creditors has been or may be put in place.
14. There are no claims or disputes in relation to the purchase of Sale Shares, and no event or circumstance exists which may give rise to such claims or disputes.
15. Neither the Company nor the Sellers have received written notice of any action or investigation or other proceedings of any nature whatsoever, by any Governmental Authority or any other person which is pending or threatened against any of them, which questions the validity of this Agreement or the right of the Parties to enter into this Agreement or to consummate the transactions contemplated hereby.

Part B: Business Warranties

The Sellers and the Company jointly and severally represent and warrant to the Buyer that:

1. Information

- 1.1. To the best knowledge of the Sellers and the Company, the information provided to the Buyer during the preparation and negotiation of this Agreement and the other Transaction Documents

was provided by the Sellers, the Company and their authorised representatives and advisors in good faith and, is true, complete and accurate and not misleading in any manner.

- 1.2. To the best knowledge of the Sellers and the Company, all information and statements contained in this Agreement (including the recitals) and the other Transaction Documents or other such contracts, certificates or other instruments are true, accurate and complete. Neither this Agreement nor each of the other Transaction Documents contains any untrue statement of a material fact or omits to state a material fact required to be stated herein or therein, or necessary in order to make the statements contained herein or therein in light of the circumstances under which they were made, not misleading. There is no fact known to the Sellers, which could have a Material Adverse Effect, which has not been set forth in this Agreement.
- 1.3. All the information which, according to the particular nature of the Company, the Business and the Sale Shares, is necessary to enable the Buyer and its representatives to make an informed assessment of the assets, liabilities, financial position, profits, losses and prospects of the Company and of the rights attached to the Sale Shares, has been disclosed to the Buyer.
- 1.4. The Company has at all times maintained and is currently maintaining in its possession all statutory registers, records and books required to be kept by it under any Applicable Law. The same, to the best knowledge of the Sellers and the Company, are and have been at all times, true, accurate and complete in all material respects.
- 1.5. To the best knowledge of the Sellers and the Company, there has been no fraud by or in relation to the Company.

2. Liabilities

Debts owed to the Company

- 2.1. There are no debts owing to the Company.

Debts owed by the Company

- 2.2. The Company does not have outstanding any borrowing or indebtedness in the nature of borrowing (including, without limitation, any indebtedness for money borrowed or raised under any acceptance credit, bond, note, bill of exchange or commercial paper, finance lease, hire purchase contract, trade bills, forward sale or purchase contract or conditional sale contract or other transaction having the commercial effect of a borrowing).
- 2.3. Trade debts incurred by the Company in the Ordinary Course of Business and outstanding as at the date hereof do not exceed INR 2,00,00,000 (Indian Rupees Two Crores) in aggregate.
- 2.4. The Company has not given nor agreed to give any guarantee, indemnity or performance bond in respect of any Indebtedness, performance or other obligations of any Person or any other commitment by which the Company is or is contingently responsible for such Indebtedness or other obligations.
- 2.5. No person has given or entered into any guarantee, indemnity or performance bond in respect of any Indebtedness of the Company.
- 2.6. No Assets of the Company have been charged, pledged, or otherwise Encumbered in favour of any Person as security for debts owed by, or other financial obligations of the Company.

3. Real Property

- 3.1. The Company does not have any owned Real Property.
- 3.2. The details of all Real Properties leased or licensed by the Company are set out in **Schedule 11** (*Details of Real Properties*), and other than the Real Properties set out in **Schedule 11**, the Company does not use or occupy any other Real Properties. The Company is in material compliance with the terms of the lease/license of all Real Property they occupy, and enjoy uninterrupted and undisputed possession of the Real Property.
- 3.3. All payments required to be made by the Company pursuant to the Real Property leases have been duly paid. Each Real Property lease or license to which the Company is a party and under which the Company is either a lessee or licensee, is a valid and subsisting agreement, duly authorized and entered into by the Company, and the Company has complied with all terms thereof. No event has occurred and is continuing which, with due notice or lapse of time, or both, would constitute an event of default by the Company under any such lease or license or by any other party thereto.
- 3.4. The Company has not sub-leased or otherwise granted to any Person, the right to use or occupy any Real Property.
- 3.5. To the best knowledge of the Sellers and the Company, there are no matters that would adversely affect the ability of the Company to carry on their Business and operations upon the Real Property.
- 3.6. There is no injunction, order or judgement outstanding, nor any claims, litigation, administrative action or similar proceedings, which are pending relating to the ownership, lease, use or occupancy of the Real Property or any portion thereof, in relation to which the Company has received a written notice of from third parties from whom the Company leases or licenses the Real Property.
- 3.7. All agreements, deeds and documents pertaining to the Real Property, have been validly executed, adequately stamped and duly registered as required under Applicable Law, and to the best knowledge of the Sellers and the Company, no event has occurred or circumstance exists that is reasonably likely to result in any Material Adverse Effect or any termination of any such agreements, deeds and documents.
- 3.8. To the best knowledge of the Sellers and the Company, all licenses, registrations, consents, permissions, non-agricultural use permissions, fire NOC, building permissions, completion / occupation permissions and other Authorisations required under Applicable Law in relation to the occupation of the Real Properties by the Company have been obtained and all such Authorisations are valid and subsisting and are in full force and effect. The Company has not received any adverse notice, claim or demand regarding the use and occupation of the Real Properties from any Persons, including Maharashtra Industrial Development Corporation.

4. Intellectual Property and Information Technology

- 4.1. The Company does not own any Intellectual Property, and has not applied for registration of any Intellectual Property except for ORIA trademark and as disclosed in the Disclosure Letter.

Confidential Information

- 4.2. Where information of a confidential nature has been developed or acquired by the Company for the purposes of their Businesses prior to the Execution Date, such information has been kept strictly confidential.
- 4.3. The Company is and has been in material compliance with the provisions of the Information Technology Act, 2000 and rules framed thereunder including the Information Technology (Reasonable security practices and procedures and sensitive personal data or information) Rules, 2011.

Information technology

- 4.4. The Company is the legal and beneficial owner of the IT System or have obtained all necessary rights from third parties to enable them to make use of the IT System for the purposes of their business as set out in **Schedule 12 (Details of IT Systems)**, and do not share the IT Systems or rights in respect thereof with any other Person. **IT System** means all computer hardware and software owned by or leased or licensed to the Company.

5. Contracts

- 5.1. None of the Contracts to which the Company is party to:

- (i) has been entered into other than on arm's length basis;
- (ii) restricts, interferes or in any way limits, either currently or any time in the future, the right of the Company to engage or carry on the Business and/or to engage in any other business activity whether related or incidental to the Business or not;
- (iii) establishes any joint venture, consortium, partnership or profit (or loss) sharing agreement or arrangement with the Company;
- (iv) involves or is likely to involve (a) expenditure by the Company; or (b) obligations or restrictions on the Company, not in the Ordinary Course of its Business;
- (v) establishes any agency, distributorship, marketing, purchasing, manufacturing or licensing agreement or arrangement; or
- (vi) has or the best knowledge of the Sellers and Company, is likely to have a Material Adverse Effect.

- 5.2. Each Contract entered into by the Company is valid, binding and enforceable, in full force and effect, and duly executed, adequately stamped and duly registered as required under Applicable Law. There are no disputes pending or threatened under any Contract. The Company or any other party thereto is compliant with and always has been compliant with all terms of all Contracts, have not in breach of or default under (or is alleged to be in breach of or default under), or has provided or received any notice of any intention to terminate, any Contract. No event or circumstance has occurred that, with notice or lapse of time or both, would constitute an event of default under any Contract or result in a termination thereof or would cause or permit the acceleration or other changes of any right or obligation or the loss of any benefit thereunder. No liquidated damages have been levied by any customer on the Company under any of the Contracts.

- 5.3. There are no outstanding powers of attorney executed on behalf of the Company to any Person.

6. Legal Proceedings; Compliance with Law

- 6.1. In each jurisdiction in which the Company is conducting their Business, they are doing so in all material respects in accordance with all Applicable Laws (including but not limited to the Companies Act, 2013 and Factories Act, 1948 and the rules framed thereunder) and regulations in that jurisdiction and their respective constitutional documents.
- 6.2. The Company has not initiated any proceedings, claims, suit, arbitration or action, or received any written notice or communication that they or their respective assets, properties, directors, officers or employees (in capacity as directors, officers or employees) are subject to any proceedings, claims, suits, governmental action, arbitration or investigation, and no proceedings, claims, suits, governmental action, arbitration or investigation have been threatened against the Company (or their respective assets, properties, directors, officers or employees (in capacity as directors, officers or employees)), and there are no criminal convictions or outstanding judgments, orders, decisions, rulings, notices, undertakings, commitments or similar matters binding on or affecting the

Company arising out of any proceedings, claims, suits, governmental action, arbitration or investigation.

- 6.3. No scheme of arrangement, amalgamation or reconstruction of the Company, or arrangement or composition with or assignment for the benefit of, all or a class of any of their creditors, is pending or proposed.
- 6.4. There is no Applicable Law which would prohibit or restrict the Company from conducting their Business, as currently conducted in any jurisdiction in which they are now conducting Business.
- 6.5. The Company has not received any written notice, allegation or complaint that it is not in material compliance with any Applicable Law or regulation.
- 6.6. The Company has not received any formal written notice from any data protection authority alleging non-compliance with Applicable Laws relating to processing of personal data or other data protection laws.
- 6.7. The Company is in material compliance with, and has conducted the Business in material compliance with, Environmental Laws. There are no claims pending or threatened against the Company in relation to any Environmental Law by any Governmental Authority, and the Company has not received any written notice of any claim alleging any breach of, or liability under, any Environmental Laws or Environmental Consents relating to the Company from any Governmental Authority.

For the purpose of this paragraph –

Environmental Laws shall mean all Applicable Laws whose purpose is to protect, or prevent pollution of, the environment or to regulate emissions, discharges, or releases of hazardous substances into the environment, or to regulate the use, treatment, storage, burial, disposal, transport or handling of hazardous substances and includes the Water (Prevention and Control of Pollution) Act, 1974, the Air (Prevention and Control of Pollution) Act, 1981, the Environment (Protection) Act, 1986, the Environment (Protection) Rules, 1986, the Bio-Medical Waste (Management & Handling) Rules, 1998, the e-waste (Management and Handling) Rules, 2011 and the Hazardous Wastes (Management, Handling and Transboundary Movement) Rules, 2016, as applicable.

Environmental Consent shall mean any consents required in accordance with Environmental Laws for carrying on the business of the Company or the use of, or any activities or operations carried out at, any site owned or occupied by the Company.

- 6.8. All statutory records of the Company, as required under Applicable Law:
 - (i) have been fully and properly maintained and contain complete and accurate records in all material respects of all matters required to be entered in them by any relevant legislation;
 - (ii) do not contain or reflect any inaccuracies or discrepancies; and
 - (iii) are in the possession and unqualified control of the Company.
- 6.9. All the meetings of the Board and the shareholders of the Company have been duly convened and held in accordance with Applicable Law (including the circulars notified by the Ministry of Corporate Affairs and secretarial standards, as applicable).
- 6.10. The Company has, in all material respects, complied with all obligations with respect to filing of forms, returns, particulars, resolutions and other documents with the Registrar of Companies in accordance with the provisions of the Act and rules made thereunder.

7. Governmental Consents

- 7.1. The Company owns, holds or possesses all Governmental Approvals and Authorisations and has made all requisite filings, from/with a Governmental Authority that are necessary for the purpose of carrying out their Business and the use of their properties as presently used.
- 7.2. The Company has fulfilled and performed their obligations and complied with all the conditions under each of the Governmental Approvals and Authorisations, and have conducted their Business in material compliance with all terms and conditions of the Governmental Approvals and Authorisations, and no event has occurred or condition or state of facts exists which constitutes or, after notice or lapse of time or both, would constitute a breach or default under any such Governmental Approval or Authorisations or would permit revocation or termination of any such Governmental Approval or Authorisations, or which might affect the rights of the Company under any such Governmental Approval or Authorisations. There have been no modifications to the terms and conditions of any of the Governmental Approval or Authorisations. No notice of cancellation, of default or of any dispute concerning any Governmental Approval or Authorisations, or of any event, condition or state of facts described in the preceding sentences, has been received by the Company. Each Governmental Approval and Authorisations is valid, subsisting and in full force and effect and will continue in full force and effect from and after the Closing Date, in each case without (i) the occurrence of any breach, default or forfeiture of rights thereunder; or (ii) the consent, approval, or act of, or the making of any filing with, any Governmental Authority.

8. Insurance

- 8.1. The Company maintains insurance policies with reputable insurers that cover such risks and contain such policy limits, and types of coverage as are generally obtained by entities engaged in the business that is similar to the Business.
- 8.2. The insurance policies that are availed by the Company in respect of the Business are in full force and effect, all premiums due and payable under all the policies have been paid, and the Company is otherwise in material compliance with the terms of the policies. There are no circumstances in existence which may make any such insurance policy void or voidable. There is no threatened termination of any such insurance policies.
- 8.3. The insurance policies held by the Company are on such terms (including without limitation as to deductibles and self-insured retentions), cover such risks, contain such deductibles and retentions and are in such amounts as are (i) customarily held by companies of established reputation engaged in the same or similar business as the Company, and (ii) required pursuant to the provisions of any Contract the Company is party to. The insurance coverage provided by such policies is adequate and suitable for the Company's Business and operations.
- 8.4. No claim is outstanding under any insurance policies obtained by the Company and no event has occurred (and no circumstance exists) that may give rise to a claim under any such policy.

9. Assets

- 9.1. All properties, rights and Assets necessary for the carrying on of the Business fully and effectively are owned, rented / leased in the name of the Company and shown in the books of accounts, free of any Encumbrances, by the Company in its own name and no such Assets are held by the Sellers or any other Person.
- 9.2. The Company is the legal and beneficial owner of and has good and marketable title to, or a valid leasehold interest in its Assets, free and clear of all Encumbrances.

9.3. All plant and machinery, equipment and other Assets of the Company included in the fixed asset register are physically identifiable, are in existence, and in good working condition (subject to ordinary wear and tear).

9.4. There are no unaccrued liabilities for any of the Assets of the Company.

10. Accounts

10.1. True, correct and complete copies of the Accounts and unaudited balance sheet and profit and loss account for the Company for the period commencing from April 01, 2024 to March 31, 2025, duly certified by the Company and Sellers, has been provided to the Buyer in the form and manner agreed to by the Buyer.

10.2. The Accounts (i) are in accordance with the books and records of the Company; (ii) to the best knowledge of the Sellers and Company are true, correct and complete and present fairly the financial condition of the Company at the date or dates therein indicated and the results of operations for the period or periods therein specified; and (iii) have been prepared in accordance with IND AS. There are no undisclosed liabilities arising out of transactions or events heretofore entered into, or any action or inaction, or any state of facts existing, with respect to or based upon transactions or events heretofore occurring.

10.3. The Accounts taken together reflect all liabilities of the Company, whether absolute, accrued or contingent, as of the respective dates thereof, required to be reflected or disclosed in a balance sheet (or the notes thereto) prepared in accordance with Ind AS. The Company does not have any liabilities, claims or obligations of any nature that are not reflected in the Accounts other than current liabilities (within the meaning of Ind AS) incurred since the dates of the respective Accounts in the Ordinary Course of Business. There is no basis for the assertion against the Company of any liability (other than current liabilities referred to above) not fully disclosed, reflected or reserved against in the Accounts.

10.4. The Accounts reflect reserves or other appropriate provisions at least equal to reasonably anticipated liabilities, Losses, sales credits and allowances, and expenses of the Company, as of the respective dates thereof, including, without limitation, those with respect to income and other Taxes, warranty claims, bad debts, unsaleable inventories, salaries, and plans and programs (including benefits programs) for the benefit of present and former employees.

10.5. Except as disclosed in the Disclosure Letter, there has not been any change in the accounting policies followed by the Company in the preceding 3 (three) Financial Years immediately prior to the Execution Date.

10.6. The Company tracks costs of the projects through an accounting software (Tally) through individual cost centers with each project designated as a distinct cost center wherein costs pertaining to such projects are recorded.

10.7. All costs towards migration to SAP have been fully accounted for, and there are no outstanding or unaccounted amounts as of the Execution Date.

10.8. The Company has no deferred capital expenditure and/or capital commitment outstanding as of the Execution Date.

10.9. The budgeted costs for ongoing projects of the Company have been calculated taking into account the actual costs incurred as per the on-going projects for different periods until the Execution Date.

- 10.10. All trade receivables (including retention money) are fully recoverable, and no additional provision is required in the Accounts for the trade receivables already accounted for, if any, till the Accounts Date.
- 10.11. The expenses charged to a capital work in progress or capitalized to fixed assets were incurred for bringing assets into existence and for putting them into working condition.
- 10.12. As of the Execution Date, all royalty charges payable to Vitrosca have been accurately accounted for in the books of the Company, and no additional royalties are payable by the Company for transactions already recorded.
- 10.13. The Accounts include all the customers and suppliers credit notes / debit notes until the Accounts Date.

11. Certain Actions

- 11.1. Other than as reflected in the Accounts of the Company, the Company has not, with respect to itself:
- (i) declared or paid any dividends, or authorized or made any distribution upon or with respect to any class or series of its Shares;
 - (ii) made any loans or advances to any Person;
 - (iii) sold, exchanged or otherwise disposed of any Assets or rights, other than the sale of inventory in the Ordinary Course of its Business;
 - (iv) entered into any transactions with any Related Parties or connected concerns; changed its accounting policies or procedures;
 - (v) made any investment or acquired any Assets other than in the Ordinary Course of Business;
 - (vi) issued or allotted agreed to issue or allot any shares capital, stock, bond or other corporate security;
 - (vii) cancelled any debt or claim without payment therefore except in the Ordinary Course of Business;
 - (viii) sold, assigned, transferred or granted an exclusive license with respect to any patent, trade name, service mark, copyright, trade secret, computer software or other intangible asset;
 - (ix) made any change in the manner of its Business or operations;
 - (x) made any capital expenditure (or series of capital expenditures);
 - (xi) made any capital investment in, any loan to, or any acquisition of the securities or Assets of, any other Person (or series of related capital investments, loans, and acquisitions); or
 - (xii) redeemed or purchased any of its shares or agreed to do so.

12. Accounts Receivable

- 12.1. All accounts receivable of the Company are good and collectible at the aggregate collectible amounts in the Ordinary Course of Business except to the extent of any reserves provided in the Accounts of the Company. The accounts receivable are not subject to any defence, counterclaim or set-off.

13. Related Party Transactions

- 13.1. No Related Party of the Company has had, either directly or indirectly, a material interest in/with:
- (a) any Person which purchases from or sells, licenses or furnishes to the Company any goods, property, technology, intellectual or other property rights or services; or
 - (b) any contract or agreement to which the Company is a party or by which it may be bound or affected.
- 13.2. All transactions entered into by the Company with all Related Parties are (i) on an arm's length basis, (ii) in material compliance with Applicable Laws (including without limitation, Section 188

of the Act), (iii) have been undertaken under the ordinary course of the Company's business, (iv) at fair market value of the goods or services for which payment is being made; and (v) disclosed in the financial statements and Board's report as required under Applicable Laws.

14. Business of the Company

- 14.1. The Company does not have any other office, place of business or permanent establishment except as set out in **Schedule 11** (*Details of Real Properties*).
- 14.2. There is no grant or subsidy received by the Company from any local, national or supranational body.
- 14.3. The Company is not a member of any trade association.
- 14.4. The Company does not have any subsidiary (as defined in the Act) or any associate company or any Affiliate, and does not hold any shares or securities in any other company or body corporate.

15. Brokers

- 15.1. The Company does not have any Contract with any Person with respect to the transactions contemplated by this Agreement, under which the Company is liable to pay any fee.

16. Directors and Employees

- 16.1. To the best knowledge of the Sellers and the Company, there is not in existence any written or unwritten contract of employment with any director or an employee of the Company (or any contract for services with any Person) which cannot be terminated by three months' notice or less and without giving rise to a claim for damages or compensation (other than a statutory redundancy payment or statutory compensation for unfair dismissal).
- 16.2. The Company does not: (i) owe any sum to any employee except for base salary accrued since the last normal pay date or for the reimbursement of properly incurred and approved expenses; (ii) has no outstanding liability for: (A) breach of a contract relating to employment; (B) redundancy payments; (C) compensation for wrongful or unfair dismissal; or (D) failure to comply with any Applicable Law in respect of any employee.
- 16.3. The Company does not have in existence or participate in and are not proposing to introduce or participate in any share incentive, share option, profit sharing or similar scheme for all or any of its employees.
- 16.4. The Company is not party to any collective bargaining agreement or union Contract and there exists no current union organizational effort with respect to any of the employees of the Company. The Company has not experienced any labour difficulties including, lock-outs, strikes, slowdowns, or work stoppages.
- 16.5. The Company has (i) fully complied with the terms and conditions of all the employment Contracts entered into by them and have discharged all obligations thereunder, including, without limitation, payment of salaries; and (ii) complied in all material respects with all legal obligations imposed on them in relation their employees.
- 16.6. The Company has not made any loan to, and are not owed moneys by, any of their employees.
- 16.7. The Company has accounted for the provision for gratuity and leave encashment in the Accounts based on the actuarial valuation by an independent valuer.

- 16.8. To the best knowledge of the Sellers and the Company, there are no actions, suits, claims, investigations or other legal proceedings, against the Company pending to be brought or filed, by or with any Governmental Authority or arbitral tribunal in connection with the employment or termination of employment of any current or former employee of Company, including, without limitation, any claim relating to unfair labor practices, employment discrimination, harassment, retaliation, equal pay or any other employment related matter arising under Applicable Laws. No employee, officer, manager, or director or independent contractor of the Company is a party to or bound by any agreement that (A) could adversely affect the performance of his or her duties as an employee, an officer, a manager, or a director other than for the benefit of the Company, (B) could adversely affect the ability of the Company to conduct its business, (C) restricts or limits in any way the scope or type of work in which he or she may be engaged other than for the benefit of the Company, or (D) requires him or her to transfer, assign, or disclose confidential information or Intellectual Property of the Company to anyone other than the Company.
- 16.9. The Company is in material compliance (including in relation to payment of contributions and other amounts under prescribed timelines) with all applicable employment and labour laws (including rules framed therein), including but not limited to: (i) Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013; (ii) applicable shops and establishment legislations including Maharashtra Shops and Establishments (Regulation of Employment and Conditions of Service) Act, 2017; (iii) Employees' Provident Fund and Miscellaneous Provisions Act, 1952; (iv) Employees State Insurance Act, 1948; (v) Maternity Benefit Act, 1961; (vi) Payment of Wages Act, 1936; (vii) Payment of Bonus Act, 1965; (viii) Minimum Wages Act, 1948; (ix) Payment of Gratuity Act, 1972; (x) Contract Labour (Regulation and Abolition) Act 1970; (xi) applicable labour welfare acts; (xii) applicable professional tax acts; (xiii) Rights of Persons with Disabilities Act, 2016; (xiv) Equal Remuneration Act 1976; (xv) Transgender Persons Act, 2019; (xvi) Industrial Employment (Standing Orders) Act, 1946; and (xvii) Maharashtra Industrial Relations Act, 1946 (and any rules and regulations under any of the laws from (i) to (xvii)).

17. Books and Records

- 17.1. All books and records of the Company, including financial, corporate, operations, sales, books of accounts, purchase records, list of major clients and service providers/suppliers, and all other documents, files, records, correspondence, financial or otherwise, have been delivered or made available to the Buyer. All such books and records, fairly and correctly set out and disclose the status of affairs, Business, practices and financial position of the Company in accordance with the Applicable Laws and best practices consistently applied and all financial matters have been accurately recorded in such books and records.
- 17.2. All significant records and information belonging to the Company or relating to their Business (whether or not held in written form) are in the exclusive possession and under the direct control of the Company and subject to unrestricted access by them.

18. Anti-bribery and anti-corruption

- 18.1. Neither the Company or the Sellers, nor any of their respective officers, directors or employees, have made, directly or indirectly, any payment or promise to pay, or gift or promise to give, or authorized such a promise or gift, of any money or anything of value, directly or indirectly to any Person for the purpose of influencing any such Person or inducing him or her to use his or her influence to affect any act or decision of any Person in order to assist the Company or Sellers to obtain or retain business for, or direct business to, the Company.
- 18.2. The Company and anyone acting on their behalf follow highest standards of ethical business practices.

- 18.3. The Company does not have any business dealings with either the private or public sector, directly or indirectly given, offered, received or agreed (either themselves or in agreement with others) any payment, gift or other advantage (i) which would violate any anti-corruption and bribery laws; (ii) was intended to, or did, influence any person to act or reward any person for acting in breach of an expectation of good faith, impartiality or trust, for which it would otherwise be improper for the recipient to accept; or (iii) was made to or for a public official with the intention of influencing them and obtaining or retaining an advantage in the conduct of business (*Corrupt Act*).
- 18.4. The Company in relation to any of its affairs has not, whether acting as principal or agent, received, agreed or attempted to receive the benefits of or profits from a crime or any Corrupt Act, or agreed to assist any person to retain the benefits of or profits from a crime or any Corrupt Act.
- 18.5. Neither the Company, nor any officer, director, agent or employee purporting to act on behalf of the Company or any other Related Party of the Company has, directly or indirectly:
- (ii) made, provided or paid any unlawful contributions, gifts, entertainment or other unlawful expenses to any candidate for political office, or failed to disclose fully any such contributions in violation of any Applicable Laws;
 - (iii) made any payment to any local, state, federal or any other type of governmental officer or official, or other person charged with similar public or quasi-public duties, other than payments required or allowed by Applicable Law;
 - (iv) made any payment to any agent, employee, officer or director of any entity with which the Company or any Related Party of such Company do business for the purpose of influencing such agent, employee, officer or director to do business with the Company or any Related Parties;
 - (v) engaged in any transactions, maintained any bank account or used any corporate funds, except for transactions, bank accounts and funds which have been and are reflected in the normally maintained books and records of the Company and/or any Related Parties of the Company; or
 - (vi) made any payment in the nature of criminal, bribery or any other unlawful payment.

19. Full Disclosure

- 19.1. The Company and Sellers have made available to the Buyer all information requested by the Buyer, for the purposes of making a determination to purchase the Sale Shares. All such information is true, adequate and correct in all material respects and no facts have been omitted there from that would (i) make such information misleading; or (ii) result in any liabilities (contingent or otherwise) being imposed on the Company.
- 19.2. There are no material facts or circumstances in relation to the Company, the Business and Sellers, or the transactions contemplated in this Agreement, which have not been fully and fairly disclosed and which if disclosed might reasonably have been expected to affect the decision of the Buyer to enter into this Agreement and the other Transaction Documents.

Part C: Tax Warranties

The Sellers and the Company jointly and severally represent and warrant to the Buyer that:

1. All Taxation of any nature whatsoever for which the Company is liable or for which the Company is liable to account and which has fallen due for payment has been duly paid (insofar as such

Taxation ought to have been paid). The Company has not asked for any extensions of time for the filing of any Tax returns or other documents relating to Taxation, or the payment of any amount of Taxation. The Company has not paid or become liable to pay any interest, penalty, surcharge or fine relating to Taxation. The Company has not been subject to or is currently subject to any investigation, audit or search and/or seizure by any Taxation authority with regard to any Taxation or Tax returns of the Company, and no deficiencies for Taxation have been proposed, asserted, raised or threatened by any Taxation authority against the Company.

2. All Tax returns and other notices, computations and returns which ought to have been given or made, have been properly and duly submitted by the Company to the relevant Taxation authorities and all such Tax returns and other information, notices, computations and returns submitted to such authorities are true, accurate and complete and are not the subject of any dispute nor, are likely to become the subject of any dispute with such authorities. All records which the Company is required to keep for Taxation purposes or which would be needed to substantiate any claim made or position taken in relation to Taxation by the Company, have been duly kept and are available for inspection at the Company's premises.
3. All rents, interest and other amounts paid or payable by the Company are wholly allowable as deductions or charges in computing the Company's income for Taxation purposes. No claim has been made for the depreciation of any Asset of the Company for Taxation purposes and no other Claim has been made for a deduction, rebate or exemption of any nature, in circumstances in which the claim is likely to be disallowed.
4. The amount of Taxation chargeable on the Company during any accounting period has not been affected to any extent by any concession, arrangements, Contract or other arrangement with any Taxation authority (not being a concession, Contract or arrangement available to companies generally). The Company is not subject to any special regime in respect of Taxation.
5. The Company has duly and timely made all deductions and withholdings in respect, or on account, of any Taxation from any payments made by it which it is obliged or entitled to make and has accounted in full to the appropriate authority for all amounts so deducted. The Company is entitled to deductions in respect of all expenses claimed in relation to any carried forward losses and no such losses have been, and none of these losses are required to be, disallowed.
6. The Company has not disposed of or acquired any Assets in circumstances such that the disposal price or acquisition cost of the Asset would be treated for Taxation purposes as being different from the consideration given or received.
7. Except as provided in the Accounts, no transactions or arrangements involving the Company have taken place or are in existence and the Company does not have a liability to Taxation except in respect of and to the extent of income and profits actually received and no arrangements exist which might give rise to such a liability, whether as a consequence of any provision relating to transfer pricing or otherwise.
8. There are no Encumbrances for Taxes (other than for current Taxes not yet due) on the Assets of the Company. The Company is not party to any agreement providing for the allocation or sharing of Taxes. No Taxes are or will be due from the Buyer with respect to the transactions contemplated by this Agreement and the other Transaction Documents.
9. All payments claimed as tax-deductible expenditure has been appropriately withheld and deposited with the Government treasury.
10. There are no (a) pending Tax Proceedings against the Sellers; (b) completed Tax Proceedings for which a notice under rule 2 of the Second Schedule of the IT Act has been served on the Sellers; or (c) any outstanding or pending Tax demands against the Sellers, that can adversely affect the

transfer of the Sale Shares from the Sellers to the Buyer under section 281 of the IT Act. All information specified in the 281 Reports and as being provided by the Sellers for preparation of the 281 Reports are true, complete, accurate and not misleading in any manner.

SCHEDULE 6

FORMAT OF CP COMPLETION NOTICE

Dated: [●]

To,

[Insert name and address of the Buyer]

Attn: [●]

Re: Share Purchase Agreement dated August 18, 2025 (the *Agreement*) between the Sellers, the Buyer and the Company.

1. This is in reference to the Agreement. Capitalised terms used but not specifically defined herein shall, unless the context requires otherwise, have the same meaning assigned to them under the Agreement or the respective Transaction Documents, as the case may be.
2. In terms of Clause 5.2 and **Schedule 4** (*Condition Precedent*) to the Agreement, the Sellers confirm that each of the following Conditions Precedent as set out **Schedule 4** (*Condition Precedent*) to the Agreement have been fulfilled. Copies (certified by an authorized representative/duly appointed officer) of the documents evidencing satisfaction of each Conditions Precedent as set out in **Schedule 4** (*Condition Precedent*) to the Agreement are enclosed herewith:

Clause in Schedule 4	CP Completion Details	Attachment No.

3. [As per term of Clause 5.3, we hereby request the Buyer to waive the completion of the following actions as conditions precedent and permit these actions to be completed post the Closing Date within the timeline as set out below:

[list of CPs that are to be waived (if any) to be inserted]
4. We hereby confirm that each of the Seller Warranties stand true, correct and not misleading in any respect as on the date of issuance of this letter and shall be deemed to be repeated on the Closing Date and we have not entered into any activity or transaction contrary to such Seller Warranties.

Yours truly,

For and on behalf of [Seller details]

Name: [●]

Authorized Signatory

SCHEDULE 7

FORM OF CP SATISFACTION NOTICE

[On the letterhead of the Buyer]

Dated: [●]

To,

[Insert name and address of the Sellers]

Attn: [●]

Re: Share Purchase Agreement dated August 18, 2025 (the *Agreement*) between the Sellers, the Buyer and the Company.

1. This is in reference to the Agreement. Capitalised terms used but not specifically defined herein shall, unless the context requires otherwise, have the same meaning assigned to them under the Agreement.
2. We are in receipt of the CP Completion Notice dated [●] issued by the Sellers in accordance with the terms of Clause 5.2 of the Agreement, confirming fulfilment of the Conditions Precedent as set out in **Schedule 4** (*Condition Precedent*).
3. In accordance with the terms of the Agreement, we hereby confirm that the Conditions Precedent mentioned in [●] of the Seller CP Completion Notice have been duly fulfilled to our satisfaction;
4. [Further, in respect of the Conditions Precedent as set out in paragraph [●] of the CP Completion Notice, the Sellers have requested for a waiver/ modification and having considered such request, we agree to waive/ modify the terms of such Conditions Precedent as follows:

[insert terms of waiver / modification here]

Yours truly,

For and on behalf of *[insert name of the Buyer]*

Name: [●]

Authorized Signatory

SCHEDULE 8

CONDITIONS SUBSEQUENT

1. The Company shall appoint an internal auditor (acceptable to the Buyer), within 3 (three) months after the Closing Date.
2. Till the time the Company has surrendered to, and the transferee(s) of the Transferred Properties have obtained from, the relevant Governmental Authorities all licenses, permits, Authorisations and consents in relation to the Transferred Properties and the activities/operations thereon, in case there are any Claims made by any Governmental Authorities or other third party against the Company in relation to the Transferred Properties and/or the activities/operations thereon, the Sellers shall defend, challenge or settle such claims on behalf of the Company at the sole cost of the Sellers.

SCHEDULE 9

FORMAT OF DISCLOSURE LETTER / UPDATED DISCLOSURE LETTER

[Name and address of Buyer]

This Disclosure Letter / Updated Disclosure Letter (Disclosure Letter / Updated Disclosure Letter) is issued pursuant to the Share Purchase Agreement dated August 18, 2025 by and between Yes Systems Private Limited, Glass Wall Systems (India) Limited, Mr. Amit Hemrajani, Mr. Eshan Hemrajani and Mrs. Vinne Hemrajani (the *Agreement*).

(a) Unless the context otherwise requires or as otherwise defined herein, words and expressions used herein have the same meanings respectively given to them in the Agreement and the provisions of Clause 1 (Definitions and Interpretation) of the Agreement shall apply to this Disclosure Letter / Updated Disclosure Letter, *mutatis mutandis*, as if they were set out herein.

(b) This letter, together with the annexures hereto, constitutes the Disclosure Letter / Updated Disclosure Letter referred to in the Agreement, and constitutes formal disclosure to the Purchasers, for the purposes of the Agreement, of the facts and circumstances which are inconsistent with the Business Warranties and Tax Warranties contained in Clause [●] read with Schedule 5 to the Agreement.

(c) Any information contained or referred to in this Disclosure Letter / Updated Disclosure Letter is to be treated as a disclosure only in respect of the particular warranty in respect of which such information has been mentioned as having been disclosed, and no other warranty.

(d) The disclosure of any matter or document in this Disclosure Letter / Updated Disclosure Letter shall not imply any representation, warranty or undertaking which is not expressly given in the Agreement, nor shall such disclosure be taken as extending the scope of any warranties.

(e) No disclosure in this Disclosure Letter / Updated Disclosure Letter relating to any non-compliance, breach or violation of any contract, approval, permit, order, certification, registration, filing or any Applicable Law shall be construed as an admission that any such non-compliance, breach or violation actually exists or has occurred or shall confer or give to any third party any remedy, claim, liability, reimbursement, cause of action or other right in relation to the aforesaid.

(f) All information disclosed in this Disclosure Letter / Updated Disclosure Letter is to be treated as Confidential Information and is subject to the confidentiality provisions in the Agreement.

(g) This Disclosure Letter / Updated Disclosure Letter may be executed in any number of counterparts and by the Parties to it on separate counterparts, each of which shall be an original. Delivery of an executed signature page of a counterpart of this Agreement in Adobe™ Portable Document Format ("PDF") sent by electronic mail shall take effect as delivery of an executed counterpart of this Disclosure Letter / Updated Disclosure Letter.

(h) The contents of any documents referred to in or annexed to this Disclosure Letter / Updated Disclosure Letter shall not be taken to have been disclosed unless reference to the specific contents is stated in this Disclosure Letter / Updated Disclosure Letter.

(i) This Disclosure Letter/Updated Disclosure Letter shall be governed by and construed in all respects in accordance with the laws of India. Clause 16 (*Governing Law and Dispute Resolution*) of the Agreement shall apply *mutatis mutandis* to this Disclosure Letter/Updated Disclosure Letter.

Disclosures

Subject to the foregoing, the following specific disclosures are made against the relevant Business Warranties and Tax Warranties:

Schedule and Paragraph reference	Warranty	Disclosure

SCHEDULE 10

ANCILLARY ENTITIES

Sr. No.	Name of the Companies/Firms	Nature of Interest	Details of Business Activities
1.	M. J. Coaters Private Limited	Member & Director	All types of wet and dry coatings that include: Powder Coating PVDF Coating Wood Finish Coating Metalizing Metal surface finishing of windows, doors and panels
2.	M.J.Designfab Private Limited (GWS Fabricators Pvt. Ltd).	Member & Director	No Activity
3.	GWS Engineers & Fabricators Private Limited	Member & Director	All types of Fabrication of: MS Brackets GI Trays Aluminium Trays Aluminium Flashings GI Flashings MS Structures Aluminium Structures Project & factory Fabrication All sorts of Sheet Metal Fabrication including that of Fire Doors, fire windows and MS support system fabrications for curtain Walls and Glasswall systems
4.	M. J. Aluminium Private Limited	Member & Director	No Activity
5.	Jaysons Chemicals and Gases Private Limited	Member & Director	No Activity
6.	M.J. Infrastructure Enterprises Pvt Ltd. (formely known as Yes Façade Systems Private Limited)	Member & Director	Rental income
7.	M. J. Enterprises	Partner	All types of wet and dry coatings and metal surface finishing, including that of Windows, doors and panels
8.	M. J. Infotech	Partner	Dealing in software and property rentals
9.	AE Infracon LLP	Designated Partner	No activity
10.	KPS Manufacturing Pvt Ltd.	Members	No activity

SCHEDULE 11

DETAILS OF REAL PROPERTIES

1. Plot No. C-07, MIDC, Vile Bhagad Industrial Area, Maharashtra, 402308

SCHEDULE 12

DETAILS OF IT SYSTEMS

1. Tally
2. G Star Cad
3. Microsoft Office
4. Microsoft Windows

SCHEDULE 13**SHAREHOLDING PATTERN OF THE BUYER****PART A: SHAREHOLDING PATTERN OF THE BUYER AS ON EXECUTION DATE**

Sr. No.	DP ID/Client ID	Name	Number of equity shares	% shareholding
1	IN303028 59279831	AMIT JAWAHAR HEMRAJANI	44,25,230	5.83%
2	IN303719 11077983	ESHAN JAWAHAR HEMRAJANI DIKSHITA LAXMAN ACHANNA	48,59,560	6.40%
3	IN303028 59217071	ESHAN JAWAHAR HEMRAJANI	44,47,915	5.86%
4	IN302902 40213269	JAWAHAR HARIRAM HEMRAJANI	3,14,47,320	41.42%
5	IN302902 40213277	VINNE JAWAHAR HEMRAJANI	3,69,355	0.49%
6	IN301348 20086292	INDIA BUSINESS EXCELLENCE FUND IIA	2,18,68,020	28.80%
7	IN301862 10004177	VISTRA ITCL (INDIA) LIMITED (TRUSTEE OF BUSINESS EXCELLENCE TRUST II - INDIA BUSINESS EXCELLENCE FUND II)	85,04,225	11.20%
		Total	7,59,21,625	100%

**PART B: SHAREHOLDING PATTERN OF THE BUYER ON CLOSING DATE
IMMEDIATELY AFTER CLOSING**

Sr. No.	DP ID/Client ID	Name	Number of equity shares	% shareholding
1	IN303028 59279831	AMIT JAWAHAR HEMRAJANI	79,12,000	9.35%
2	IN303719 11077983	ESHAN JAWAHAR HEMRAJANI DIKSHITA LAXMAN ACHANNA	48,59,560	5.74%
3	IN303028 59217071	ESHAN JAWAHAR HEMRAJANI	79,34,685	9.37%
4	IN302902 40213269	JAWAHAR HARIRAM HEMRAJANI	3,14,47,320	37.15%
5	IN302902 40213277	VINNE JAWAHAR HEMRAJANI	21,12,740	2.50%
6	IN301348 20086292	INDIA BUSINESS EXCELLENCE FUND IIA	2,18,68,020	25.84%
7	IN301862 10004177	VISTRA ITCL (INDIA) LIMITED (TRUSTEE OF BUSINESS EXCELLENCE TRUST II - INDIA BUSINESS EXCELLENCE FUND II)	85,04,225	10.05%
	Total		8,46,38,550	100%

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE ENTERED INTO THIS AGREEMENT ON THE DAY AND YEAR FIRST ABOVE WRITTEN:

For and on behalf of Glass Wall Systems (India) Limited



Authorised Signatory

Name: Mr. Jawahar Hemrajani

Designation: Whole-time Director



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IN WITNESS WHEREOF, THE PARTIES HERETO HAVE ENTERED INTO THIS
AGREEMENT ON THE DAY AND YEAR FIRST ABOVE WRITTEN:



MR. ESHAN HEMRAJANI



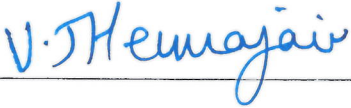
IN WITNESS WHEREOF, THE PARTIES HERETO HAVE ENTERED INTO THIS AGREEMENT ON THE DAY AND YEAR FIRST ABOVE WRITTEN:



MR. AMIT HEMRAJANI



IN WITNESS WHEREOF, THE PARTIES HERETO HAVE ENTERED INTO THIS AGREEMENT ON THE DAY AND YEAR FIRST ABOVE WRITTEN:



MRS. VINNE HEMRAJANI

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE ENTERED INTO THIS AGREEMENT ON THE DAY AND YEAR FIRST ABOVE WRITTEN:

For and on behalf of Yes Systems Private Limited



Authorised Signatory

Name: Mr. Amit Hemrajani

Designation: Director

